Request for Proposal (RFP)

for

Selection of Technical Advisory Agency (TAA) for Establishment of Disaster Recovery (DR) Centre and PMU Services for APSDC– 2nd call

Proprietary & Confidential

October 2026

Ref.No. ITC51-20021/5/2026-INFR-APTS

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(Government of AP Undertaking)
(CERT-In Empanelled,ISO 9001:2015, ISO 27001:2013 Certified)
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Abbreviation	Full Form / Description
AMC	Annual Maintenance Contract
APTS	Andhra Pradesh Technology Services Ltd
BoM	Bill of Material
BU	Building Use Permission
BICSI	Building Industry Consulting Service International
CCTV	Closed-Circuit Television
CDCP	Certified Data Center Professional
CDCS	Certified Data Center Specialist
CCNP	Cisco Certified Network Professional
CISSP	Certified Information Systems Security Professional
CISA	Certified Information Systems Audit
CISM	Certified Information Security Manager
DCDC	Data Center Design Consultant
DCIM	Data Center Infrastructure Management
DPR	Detailed Project Report
DR	Disaster Recovery
EMD	Earnest Money Deposit
FAT	Factory Acceptance Testing
Fn	Normalized Financial Score
GCC	General Conditions of Contract
GST	Goods and Service Tax
HVAC	Heating, Ventilation and Air Conditioning
ITE&C Dept	Information Technology, Electronics & Communications Department
IGBC	Indian Green Building Council
ISO	International Organization for Standardization
LoI	Letter of Intent
MCA	Master of Computer Applications
MEP	Mechanical, Electrical & Plumbing
MIS	Management Information System
MSP	Master Service Provider
NMS	Network Management System
NOC	Network Operations Centre / No Objection Certificate (contextual)
O&M	Operations & Maintenance
PBG	Performance Bank Guarantee
PUE	Power Usage Effectiveness
PMU	Project Monitoring Unit
PWD	Public Works Department
QA/QC	Quality Assurance / Quality Control
RFP	Request for Proposal
SCC	Special Conditions of Contract
SDC	State Data Centre
SLA	Service Level Agreement
Tb	Technical Bid Score (Absolute)

Abbreviation	Full Form / Description
Tn	Normalized Technical Score
TIER-III / TIER-IV	Uptime Institute Tier Classification for Data Centres
TIA	Telecommunications Industry Association (ANSI/TIA-942 Standard)
UPS	Uninterruptible Power Supply
VAT	Value Added Tax (wherever applicable contextually)
MSP	Master Service Provider
TAA	Technical Advisory Agency as lead bidder and consortium partner if any

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2 Advertisement

Tender Call Notice for "Selection of Technical Advisory Agency (TAA) for Establishment of Disaster Recovery (DR) Centre and PMU Services for APSDC"

APTS on behalf of ITE&C Dept., Govt. of Andhra Pradesh (GoAP) is inviting bids from the Service Providers/ bidders towards Selection of Technical Advisory Agency (TAA) for Establishment of Disaster Recovery (DR) Centre and PMU Services for APSDC, ITE&C Department, GoAP. The Agency shall function as an Advisory Unit to the ITE&C Department for the Establishment of the Disaster Recovery (DR) Centre under the BOOT (Build-Own-Operate-Transfer) model, optimizing the Primary Data Center and for monitoring of Data Centre (DC) and DR sites. The time schedules of various tender related events are as follows:

Bid calling date	21.10.2026
Pre-bid conference date	26.10.2026, 12:30 PM (Online and In-person)
Last date for pre-bid queries submission	26.10.2026, 5 PM
Issue of Pre-bid clarifications	27.10.2026
Bid Submission closing date/ time	03.11.2026, 3.00 PM
Bid Opening date/time	03.11.2026, 3.30 PM
Bid Document Fee	Rs.10,000/- payable through online in APeProcurement portal (Non-refundable)
APTS Contact person	Smt. M Sailaja, Manager 8374746522 (M), msailaja-ap@nic.in
APTS Reference No.	ITC51-20021/5/2026-INFR-APTS

If your firm is interested in participation, please ask the contact person for details or visit our web site at https://www.apts.gov.in or tender.apeprocurement.gov.in. The document is to be purchased by firms for participation.

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M.G. Road, Vijayawada - 520 010, India.
Telephones: 91 (866) 2468108

3 Proposal

The ITE&C Department, Government of Andhra Pradesh, is in the process of establishing a Disaster Recovery (DR) Centre for the AP State Data Centre (APSDC) under the BOOT (Build-Own-Operate-Transfer) model, which is a strategically critical initiative to ensure business continuity, data protection, and resilience of Government applications.

Considering the complexity, scale, and multi-dimensional nature of the project involving technical, financial, contractual, and operational aspects, it is essential to have an independent Technical Advisory Agency (TAA) to guide the Department in the entire lifecycle of establishing DR center. Hence onboarding of a Technical Advisory Agency (TAA) will have a significant importance, as the agency will bring-in domain expertise, independent assessment capabilities, and structured project management practices. Further, identification and onboarding of the TAA prior to selection of the Master Service Provider is essential to ensure technical robustness, transparency, and efficient project execution.

The TAA shall undertake a comprehensive assessment of the existing Primary Data Centre ecosystem including infrastructure, network dependencies, and disaster recovery preparedness, and accordingly define the DR/BCP framework with appropriate Recovery Point Objectives (RPO) and Recovery Time Objectives (RTO) aligned with industry best practices and regulatory requirements. This foundational assessment is critical to ensure that the DR solution is appropriately designed, scalable, and aligned with actual business continuity needs.

The Technical Advisory Agency (TAA) shall act as the Department's end-to-end advisor for establishment of the Disaster Recovery (DR) Centre and monitoring of the existing Data Centre (DC)/State Data Centre (SDC). The TAA shall be responsible for the development of the Detailed Project Report (DPR) and the design of the DR Centre, covering the IT, Civil, Electrical and other Non-IT infrastructure components, as applicable. The TAA shall define the overall project requirements, design approach, technology architecture, implementation methodology, sizing, costing, technical specifications, drawings, standards and other key technical components required for establishment of the DR Centre.

Further, the TAA shall assist the Department in preparation of a comprehensive RFP for selection of a Master Service Provider (MSP) responsible for end-to-end establishment of the Disaster Recovery (DR) Centre including DR civil, electrical and all other non-IT components, supply, implementation, testing, commissioning, operationalization, and maintenance of the Civil, Non-IT, and IT infrastructure components. The TAA shall be responsible for defining and finalizing the overall scope, technical specifications, designs, drawings, estimates, standards, implementation requirements, technology architecture, sizing, security requirements, service levels, operational framework, implementation methodology, acceptance criteria, and other requirements for the Civil, Non-IT and IT infrastructure components of the DR Centre. The TAA shall retain overall responsibility for MSP RFP rollout, stakeholders coordination, technical oversight, integration of all project components, and ensuring completeness and consistency of the MSP RFP. In addition, the TAA shall support the Department throughout the procurement lifecycle, including pre-bid consultations, bid evaluation, technical and financial bid assessment, preparation of evaluation reports, and recommendation for selection of the most suitable MSP for establishment and operations of the DR Centre.

During the project execution phase, the TAA shall function as the central Project Monitoring Unit (PMU) and provide overall program management support for activities undertaken by the Master Service Provider (MSP).

The TAA shall monitor project progress, conduct periodic reviews and site inspections, facilitate stakeholder coordination, identify and mitigate implementation risks, and ensure adherence to approved designs, timelines, quality standards, and contractual obligations. The TAA shall also oversee testing, commissioning, and operational readiness of the DR Centre. Post go-live, the TAA shall continue to function as the PMU and strategic advisory agency, supporting

governance, monitoring operational performance of the DC and DR environment, reviewing SLA compliance, and ensuring sustained alignment with the Department's operational and service delivery objectives during the O&M period.

4 Data Sheet

#	Item	Details
1.	RFP reference No and Date	ITC51-20021/5/2026-INFR-APTS dated 21.10.2026
2.	Bid document fee (Non-Refundable)	Rs.10,000/- (Rupees Ten Thousand only) To be paid on eProcurement portal
3.	Publication of Tender Document through APeProcurement Portal	21.10.2026
4.	Pre-bid conference date	26.10.2026, 12:30 PM (Online and In-person)
5.	Last date for pre-bid clarifications submission	26.10.2026, 5 PM
6.	Issue of Pre-bid clarifications	27.10.2026
7.	Last Date and Time for Submission of Bids	03.11.2026, 3.00 PM
8.	Venue/ Locations for Submission of bids, opening of PQ, Technical bids and Financial bids	Through Online (APeProcurement Portal)
9.	Bid opening date on e-procurement platform	03.11.2026, 3.30pm
10.	Technical bid opening	Will be communicated
11.	Indicative date for Technical presentation if any	Will be communicated
12.	Financial bid opening	Will be informed to technically qualified bidders
13.	APTS Contact Person for any Queries	Smt. M Sailaja, Manager
14.	APTS Contact Person E-Mail ID and contact number	msailaja-ap@nic.in, Mobile-8374746522
15.	Method of Selection	The method of selection is QCBS (70:30)
16.	EMD (Online / BG)	Rs.15,00,000/- (Rupees Fifteen Lakhs only)
17.	EMD validity Period	a. The bidder shall submit the Bid security (EMD) in favor of The Managing Director, AP Technology Services Limited (APTSL) payable at Vijayawada. Note: - The EMD amount can be paid through online APeProcurement portal at the time of bid submission or scanned copy of Bank Guarantee (BG) from Scheduled banks only should be uploaded online. BG from Cooperative banks are not acceptable. b. In case BG submitted, the original copy of BG should be submitted to APTS within 48 hours of bid submission date. c. EMD will be return to unsuccessful bidders.
18.	Performance Security	The bidder has to submit 10% of Contract Value as PBG in favor of "The Managing Director, A.P. Technology Services Limited" payable at Vijayawada, AP from any Nationalized/ Scheduled Bank having at least one branch at Vijayawada, AP

#	Item	Details
19.	Performance Security validity period	a. **Submission of PBG:** Within 14 days from date of receipt of Notification of Award (NoA). b. **PBG validity:** 90 days beyond contract period c. The EMD of successful bidder shall be returned on submission of PBG. d. If the selected bidder fails to submit the performance guarantee within the specified time or not signed the contract agreement within the specified period, then APTS will forfeit the EMD of the successful bidder.
20.	Contract Period	The overall contract period shall be fifty-four (54) months from the date of commencement of services (T0). **Phase-I (18 Months)** – I. **Part A** – Existing DC Monitoring and DR Centre Design II. **Part B** – DPR and Master Service Provider Procurement Support III. **Part C** – MSP Implementation Oversight and DR Centre Deployment Support **Phase-II (36 Months)** – I. DC/DR Operations Governance, Monitoring and Advisory Support The overall engagement period of the TAA shall be fifty-four (54) months from the date of signing contract. At the end of the contract, the ITE&C Dept/ APTS may extend the contract period, if required, with mutually agreed terms & conditions in alignment with the MSP contract.
21.	Period for Signing contract	Within 10 days from date of receipt of Notification of Award (NoA).
22.	Bid Validity	180 working days from the date of submission of online bids
23.	Variation in quantities	IT&C Department/ APTS may take additional resources if required at the same rates finalized in the tender, during the validity of the contract period. Additional payments shall be considered only for resources specifically requested and approved by ITE&C Department/APTS beyond the contracted team strength. Any resources deployed at the bidder's discretion for meeting contractual commitments shall not attract any additional payment to TAA
24.	Deployment of Resources	Within 21 days from date of signing contract

#	Item	Details
25.	Deployment of Additional Resources, if required	Within 15 days from date of indent.
26.	Payment terms	As per payment terms specified in RFP
27.	Penalty	As defined in the Service Level Agreements section of this RFP
28.	Conditional bids	Not accepted, liable for rejection of bid
29.	Eligibility Criteria	As per pre-qualification criteria specified in RFP
30.	Technical Evaluation Score	The bidder has to attain minimum 70 Marks to qualify in the Technical Stage.
31.	Final Evaluation	a) Final selection ratio is 70:30 in the Technical & Financial. b) Highest score bidder will be declared as "Successful Bidder". c) Notification of Award will be issued to the "Successful Bidder" after negotiation, if any.
32.	Transaction Fee	a. **Transaction fee:** All the participating bidders who submit the bids have to pay an amount @ 0.03% of their final bid value online with a cap of Rs.10,000/- for quoted value of purchase up to Rs.50 Crores and Rs.25,000/- if the purchase value is above Rs.50 Crores & Service Tax applicable as levied by Govt. of India on transaction fee through online in favor of MD, APTS. The amount payable to APTS is non-refundable. The Transaction fee is not included in the tender fees and it is a separate fee to be paid online on Ap-eProcurement portal at the time of bid submission b. **Non-refundable Corpus Fund:** Successful bidder has to pay an amount of 0.04% on quoted value through demand draft in favor of Managing Director, APTS towards corpus fund at the time of concluding agreement.
33.	Transaction Fee Payable to	The Managing Director, A.P. Technology Services Ltd., Vijayawada
34.	Bid submission	**Online**. Bidders are requested to submit the bids after issue of minutes of the pre-bid meeting duly considering the changes made if any, during the pre-bid meeting. Bidders are totally responsible for incorporating/ complying the changes/ amendments issued, if any during pre-bid meeting in their bid.
35.	Procedure for Bid Submission	a. Bids shall be submitted online on https: //tender.apeprocurement.gov.in platform b. The participating bidders in the tender should register themselves free of cost on AP eProcurement platform in the website https:// tender.apeprocurement.gov.in. c. Bidders can log-in to AP eProcurement platform in Secure mode only by signing with the Digital certificates. d. The bidders who are desirous of participating in AP eProcurement shall submit their technical bids, price bids as per the standard formats available at the portal.

#	Item	Details
		e. The bidders should scan and upload the respective documents in Pre-Qualification and Technical bid documentation as detailed at Section 23 & 24 of the RFP including EMD. The bidders shall sign on all the statements, documents certificates uploaded by them, owning responsibility for their correctness/ authenticity. f. The rates should be quoted in online only
36.	Other conditions	a. After uploading the documents, the copies of the uploaded statements, certificates, documents, original Demand Drafts in respect of Bid Security (except the Price bid/ offer/ break-up of taxes) are to be submitted by the bidder to the O/o The Managing Director, APTS, R&B Building, Vijayawada within the next working day of opening PQ bids. Failure to furnish any of the uploaded documents, certificates, will entitled in rejection of the bid. The APTS shall not hold any risk on account of postal delay. Similarly, if any of the certificates, documents, etc., furnished by the Bidder are found to be false/ fabricated/ bogus, the bidder will be disqualified, blacklisted, action will be initiated as deemed fit and the Bid Security will be forfeited. b. APTS will not hold any risk and responsibility regulating non-visibility of the scanned and uploaded documents. c. The Documents that are uploaded online on APeProcurement portal will only be considered for Bid Evaluation along with any clarifications provided by bidder on request of APTS/ITE&C department on bids submitted. d. Important Notice to Contractors, Suppliers and Department users (i) In the endeavor to bring total automation of processes in e-Procurement, the Govt. has issued orders vide GO.Ms.No.13, dated. 05.07.2006 permitting integration of electronic Payment Gateway of ICICI/HDFC/Axis Banks with e-Procurement platform, which provides a facility to participating suppliers/ contractors to electronically pay the transaction fee online using their credit cards.

5 Background

5.1 Introduction

The AP State Data Centre (APSDC) is a key-supporting pillar of e-Government initiatives for delivering services to the citizens with greater reliability, availability, and serviceability. SDC provides better operations & management control and minimizes overall cost of Data Management, IT Management, Deployment, and other costs. The State Data Centers are conceptualized with the objective of providing a common enabling infrastructure to the States to cater to their e-Governance applications hosting requirements of the entire state government and its departments. State Data Centre has been identified as one of the core infrastructure components to consolidate services, applications, and infrastructure to provide efficient electronic delivery of G2G, G2C and G2B services. It is enabling various State departments to host their services/applications on a common infrastructure leading to ease of integration and efficient management, ensuring that computing resources and the support connectivity infrastructure is adequately and optimally used.

The erstwhile combined state of Andhra Pradesh had implemented AP State Data Center (APSDC) under National e-Governance Plan in 2011 at Hyderabad. The SDC, Hyderabad provided common IT infrastructure to host e-Governance initiatives/ applications of GoAP Departments. Post AP State Reorganization Act 2014, GoAP has taken the rack space in lease-in model from Pi Data Centers (PIDC) and established AP State Data Center (APSDC), Amaravati. A total of 60 racks were contracted in a exclusive data hall dedicatedly allotted for GoAP and this covers 3000 S.Ft for server farm area. The Pi Data Centers is providing the Non-IT services for APSDC.

5.2 Existing Landscape of APSDC primary site @ Amaravati

The APSDC, Amaravati infrastructure is highly robust, sophisticated and deployed in redundant mode (active-active). Currently, APSDC is operating with 134 node multi-cluster fully virtualized environment with 2800+ virtual machines operational. The total compute and storage infrastructure in virtualization setup is 127 TB memory, 14 THz of CPU, 2PB NAS and 3.8 PB SAN, 1.1 PB Backup Storage and 200TB Archive Storage. Regarding the bandwidth, 12 Gbps internet, 2 Gbps MPLS connectivity to APSDWAN and 310 Mbps P2P to AP Secretariat is available. There are around 500+ applications belonging to various line Departments have hosted their critical citizen centric applications in dual stack (Both IPv4 and IPv6).

5.3 Way Forward

The Govt. of Andhra Pradesh has decided to establish the Disaster Recovery (DR) Centre for the AP State Data Centre (APSDC) under the BOOT (Build-Own-Operate-Transfer) model in IIDT Campus, Tirupati. The objective of this Request for Proposal ('RFP') is to select a Technical Advisory Agency (TAA) to provide advisory, procurement, and project management support for establishment of the Disaster Recovery (DR) Centre and monitoring of existing DC for the AP State Data Centre (APSDC).

This is a Request for Proposal (RFP) seeking proposals from NeGD empaneled Category-Agencies to assist the APTS/ITE&C Department in ensuring a technically robust, secure, resilient, and efficient DR site readiness and undertake PMU throughout the project lifecycle, from planning and implementation to operations and monitoring. In this respect, APTSL hereby solicits proposals from suitably interested parties (the 'Bidders') meeting the qualification criteria defined in this RFP.

The proposals submitted by the bidders shall comply with all the requirements stated in this RFP (the 'Proposal'). Based on the final evaluation, the successful bidder will be selected and notified (hereinafter referred to as the 'Vendor/ Technical Advisory Agency (TAA)').

Accordingly, APTSL will enter into agreement(s) with the Vendor/ Technical Advisory Agency (TAA)', as the case may be. Notwithstanding anything whatsoever, all the terms and conditions of this RFP shall be duly binding on the bidder and Vendor/ Technical Advisory Agency (TAA)'.

6 Bidding Procedure

6.1 Definitions

a. **"Request for Proposal (RFP)"**, means this detailed notification seeking a set of solution(s), services(s), materials and/or any combination of them.
b. **Tender call or invitation for bids,** means the detailed notification seeking a set of solution(s), service(s), materials, or any combination of them.
c. **Two-part bid** means the pre-qualification/technical bid and financial bids put in separate covers and their evaluation is sequential.
d. **"Contract"** means the agreement entered between the APTS and the vendor, as recorded in the contract form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.
e. **"Contract Period"** shall mean the period from the date of signing of the Agreement and up to the completion of period of contract.
f. **"Contract price"** means the price payable to the bidder under the contract for the full and proper performance of its contractual obligations.
g. **"Requirements"** shall mean and include schedules, details, description, statement of technical data, performance characteristics, standards (Indian as well as International) as applicable and specified in the RFP.
h. **"Service"** means provision of Contracted service as per this RFP.
i. **"Site"** shall mean the location(s) for which the Contract has been issued and where the service shall be provided as per agreement.
j. **"Technical Advisory Agency"** means the successful bidder, appointed by APTS on behalf of GoAP for monitoring the ITE&C Department projects.
k. **"Incidental services"** means those services ancillary to the supply of the goods and services, such as transportation and insurance, and any other incidental services, such as installation, commissioning, provision of technical assistance, training and other such obligations of the bidder covered under the contract.
l. **"Termination Notice"** means the written notice of termination of the Agreement issued by one Party to the other in terms hereof.
m. **"Purchaser/ User"** means ultimate recipient of goods and services.
n. **"Project site",** where applicable, means the place(s) where goods/services are to be made available to user.
o. **"Day"** means calendar day.
p. **"Specification"** means the functional and technical specifications or statement of work, as the case may be.
q. **"Firm"** means a company, authority, cooperative or any other organization incorporated under appropriate statute as is applicable in the country of incorporation.
r. **"Bidder"** means any firm offering the solution(s), service(s) and/or materials required in the tender call. The word vendor when used in the pre award period shall be synonymous with bidder and when used after award of the contract shall mean the successful bidder with whom APTS signs the contract for rendering of goods and services.
s. **"Pre-Qualification and Technical bid"** means that part of the offer that provides information to facilitate assessment, by APTS, professional, technical and financial standing of the bidder, conformity to specifications etc.
t. **"Financial bid"** means that part of the offer that provides price schedule, total project costs etc.
u. **"Three-part bid"** means the pre-qualification bid, technical and financial bids are put in separate covers and their evaluation is sequential.
v. **"Composite bid"** means a bid in which the technical and financial parts are combined into one format, but their evaluation is sequential.

w. **"Goods and services"** mean the solution(s), service(s), materials or a combination of them in the context of the tender call and specifications. The word goods when used singly shall mean the hardware, firmware component of the goods and services.
x. **"Government"**: "Government" means Government of Andhra Pradesh (GoAP), represented by Secretary to Govt., Information Technology Electronics & Communications Department (ITE&C Department) in the scope of this tender document.
y. **"ITE&C Department, Government of Andhra Pradesh"** Shall act as the Project Owner and overall decision-making authority responsible for policy direction, approvals, and strategic oversight of the project.
z. **"Andhra Pradesh Technology Services Limited (APTS)"** Shall act as the implementing and procurement support agency responsible for conducting the bid process, contract management, and coordination with stakeholders.
aa. **"Technical Advisory Agency (TAA)"** Shall function as an independent advisor and Project Monitoring Unit (PMU), responsible for providing technical, commercial, and project management advisory services across the project lifecycle without undertaking execution responsibilities.
bb. **"Service Provider"** Shall be selected through a separate RFP process and shall be solely responsible for design, construction, implementation, and operations of the Disaster Recovery (DR) Centre under the BOOT model.
cc. **"Coordination Framework"** All roles shall operate in coordination with clearly defined responsibilities, maintaining independence, transparency, and accountability as specified in this RFP.

6.2 General eligibility

a. This invitation for bids is open to all firms who are eligible to do business in India under relevant Indian laws as is in force at the time of bidding subject to Pre-qualifications.
b. Bidders marked/considered by APTS to be ineligible to participate for non-satisfactory past performance, corrupt, fraudulent or any other unethical business practices shall not be eligible.
c. Breach of any instructions of bidding or contract with APTS or any of its user organizations in past or in this case may make a firm ineligible to participate in bidding process.

6.3 Bid submission

Offers should be made in three parts namely, "Pre-qualification bid", "Technical bid" and "Financial bid" and in the format given in bid document. Each offer should be placed in a separate folder, as the case may be, followed by the title mentioned above against " tender call:"

a. EMD should be enclosed in the "Pre-qualification bid" envelope.
b. Tenders will be accepted only from those who have received/ purchased bid document from APTS.
c. All correspondence should be with APTS contact person.
d. A complete set of bidding documents may be obtained by interested bidders from the APTS contact person upon payment of the bid document price which is non-refundable. Payment of bid document price should be by Online/ Demand Draft/ Cashier's Cheque or Certified Cheque drawn in favor of "The Managing Director, Andhra Pradesh Technology Services Ltd." and payable at Vijayawada (India). The document can be picked up by courier designated by the interested bidder.

6.4 Pre-bid Meeting and Clarifications

All those bidders who had purchased bid document can participate in the meeting to seek clarifications on the bid, if any.

After release of the RFP, APTS will accept Request for Clarification from the interested parties. All clarifications should be sent in writing as per the format provided in the table below.

SNo.	page number in RFP	section number in RFP	Content of RFP requiring clarification	Points of clarification required

All clarifications should be sent from email ID of Prime contact person of the bidder on or before the deadline mentioned in the RFP. Telephone calls will not be accepted for clarifying the queries.

All enquiries/ clarifications from the prospective bidders for this RFP must be directed to the contact person notified by APTS as given in the data sheet. In no event will APTS be responsible for ensuring that Bidders' inquiries have been received by APTS. APTS may at its option share the replies to the queries by publishing it on the website www.apts.gov.in / APeProcurement portal (https://tender.apeprocurement.gov.in). However, APTS makes no representation or warranty as to the completeness of any response, nor does APTS undertake to answer all the queries that have been posed by the Bidder. The bidders or their designated representatives may attend the Pre–Bid Meeting at their own cost, at the venue on date specified in the RFP Datasheet. It is not mandatory for all the prospective bidders to attend the pre bid meeting to participate in the pre bid discussions & to receive the clarifications issued during the pre-bid. The purpose of the meetings will be to clarify issues and to answer questions on any matter relating to the RFP that may be raised at that stage.

The participants are advised to be present 30 minutes in advance to the scheduled time of the Pre-Bid Meeting on VC setup. Bidders who requested the APTS contact person, will be provided the VC link.

- Please note that not attending the Pre–Bid Meeting will not be a cause for disqualification of a bidder.
- No queries will be answered in regard to the tender document before the Pre-Bid meeting.
- After issue of pre bid clarifications, no further clarifications shall be entertained.

6.5 Pre-Qualification Bid Documentation

It shall include the following information about the firm and/or its proposal.

a. Letter of Proposal (Form P-1)
b. Bidder Information (Form P-2)
c. Turnover details of Company (Form P-3)
d. Details of Past Experience of Similar Projects (Form P-4)
e. Non-Blacklisting/ Clean Track Record (Form P-5)
f. Bidders Authorization/ Power of Attorney (Form P-6)
g. Undertaking form for AP GST Registration (Form P-7)
h. Format for Self-Declaration on GO.Ms.12 (Form P-8)
i. Technically Qualified Personnel (Form P-9)
j. Other pre-qualification forms as per RFP requirements

6.6 Technical Bid Documentation

Technical bid documentation shall be evaluated in two sub-steps. Firstly, the documentation furnished by the bidder shall be examined prima facie to see if the product/ services offered, technical skill base and financial capacity and other bidder attributes claimed therein are consistent with the needs of this project. In the second step, APTS may ask bidder(s) for additional information, visit to bidders site and/or arrange discussions with their professional, technical faculties to verify claims made in technical bid documentation. Technical bid include:

a. Compliance/ Agreed/ Enclosed/ Deviation Statement (Form T-1)
b. Manpower Proposed (Form T-2)
c. Other technical forms if any as per RFP

6.7 Financial Bid Documentation

a. Final choice of firm to execute the project shall be made on the basis of conformity to technical requirements, appropriateness of the services offered, capability of bidder to execute and service the project and appropriateness of financial offer from the point of view of cost-effectiveness over the entire contract period for the product/ services. The quoted professional fees shall be exclusive of GST. GST shall be paid extra at applicable rates as per prevailing Government regulations and shall be reimbursed upon submission of valid tax invoices.
b. The financial bid should provide cost calculations corresponding to unit price of each in the following financial forms. **(**through online www.apeprocurement.gov.in or https://tender.apeprocurement.gov.in)

    i. Financial Bid form (Form F-1)

6.8 Supplementary Information/ Corrigendum/ Amendment to the RFP

a. If APTS deems it appropriate to revise any part of this RFP or to issue additional data to clarify an interpretation of the provisions of this RFP, it may issue supplements/corrigendum to this RFP. Such supplemental information will be communicated to all the bidders who participated in the pre-bid meeting by e-mail and will also be made available on www.apts.gov.in/ APeProcurement portal. Any such supplement shall be deemed to be incorporated by this reference into this RFP.
b. At any time prior to the deadline (or as extended by APTS) for submission of bids, APTS, for any reason, whether at its own initiative or in response to clarifications requested by prospective bidder, APTS may modify the RFP document by issuing amendment(s). All bidders who have attended the pre-bid meeting will be notified of such amendment(s) and will also be made available on www.apts.gov.in/ APeProcurement portal, and these will be binding on all the bidders.
c. In order to allow bidders a reasonable time to take the amendment(s) into account in preparing their bids, APTS, at its discretion, may extend the deadline for the submission of bids.

6.9 Bid Evaluation Procedure

Bids would be evaluated for entire Schedule. Bidders should offer prices for all the items of Schedule and for the full quantity of an item of Schedule failing which such bid will not be considered. Technical bid documentation should be in the prescribed format. If a bidder has any comment to offer about the procedural aspects of this tender, it should be intimated to APTS during the pre-bid meeting. In case the schedule or procedure of tender processing is revised, the same shall be communicated by telephone, fax, and courier as the case may be to all bidders who have purchased the bid document.

6.10 Opening of bids

Immediately after the closing time, the APTS contact person shall open online pre-qualification bid, and list them for further evaluation. The Technical bids of only those bidders who qualify in the pre-qualification bid will be opened. After evaluation of technical bids, the financial bids of only those bidders who qualify in technical evaluation will be opened. Any participating bidder may depute a representative to witness these processes.

6.11 EMD Validity

The EMD will be scrutinized first for the amount and validity period. The bids submitted with required EMD amount and validity only be considered for the evaluation. The bids submitted with insufficient EMD amount/validity will be treated as disqualified bids and those bids will not be considered for further evaluation.

6.12 Bid forms

a. Wherever a specific form is prescribed in the bid document, the bidder shall use the form to provide relevant information. If the form does not provide space for any required information, space at the end of the form or additional sheets shall be used to convey the said information.
b. For all other cases, the bidder shall design a form to hold the required information.

6.13 Cost of bidding

a. The bidder shall bear all costs associated with the preparation and submission of its bid, and APTS will in no case be responsible for those costs, regardless of the conduct or outcome of the bidding process.
b. The bidder is expected to examine all instructions, forms, terms, and specifications in the bidding documents. Failure to furnish all information required by the bidding documents or to submit a bid not substantially responsive to the bidding documents in every respect will be at the bidder's risk and may result in the rejection of its bid.

6.14 Clarification of bidding documents

a. A prospective bidder requiring any clarification of the bidding documents may notify APTS contact person. Written copies of the APTS response (including an explanation of the query but without identifying the source of inquiry) will be sent to all prospective bidders that have received the bidding documents.
b. The concerned person of APTS will respond to any request for clarification of bidding documents which it receives no later than bid clarification date mentioned in the notice prior to deadline for submission of bids prescribed in the tender notice. No clarification from any bidder shall be entertained after the close of date and time for seeking clarification mentioned in tender call notice. It is further clarified that APTS shall not entertain any correspondence regarding delay or non-receipt of clarification by bidder.

6.15 Amendment of bidding documents

a. At any time prior to the deadline for submission of bids, APTS, for any reason, whether at its own initiative or in response to a clarification requested by a prospective bidder, may modify the bidding documents by amendment.
b. All prospective bidders those have received the bidding documents will be notified of the amendment and such modification will be binding on all bidders.
c. In order to allow prospective bidders reasonable time in which to take the amendment into account in preparing their bids, the APTS, at its discretion, may extend the deadline for the submission of bids.

6.16 Period of validity of bids

a. Bids shall remain valid for the days or duration specified in the bid document, after the date of bid opening prescribed by APTS. A bid valid for a shorter period shall be rejected as non-responsive.
b. In exceptional circumstances, the APTS may solicit the bidders' consent to
c. An extension of the period of validity. The request and the responses thereto shall be made in writing. The bid security shall also be suitably extended. A bidder granting the request will not be permitted to modify its bid.

6.17 Submission of bids

The bidders shall submit all the bids i.e., Pre-Qualification, Technical and Financial Bids on APeProcurement website (https://tender.apeprocurement.gov.in) only.

6.18 Deadline for submission of bids

a. Bids must be submitted on https://tender.apeprocurement.gov.in website not later than the bid submission date and time specified in the tender call notice.
b. The APTS may, at its discretion, extend this deadline for the submission of bids by amending the tender call, in which case all rights and obligations of the APTS and bidders previously subject to the deadline will thereafter be subject to the deadline as extended.

6.19 Late bids

Bidders are advised to check APeProcurement portal on submission timelines, eProcurement portal may not accept any bid after cut-off timeline indicated in the portal.

6.20 Modification and withdrawal of bids

a. The bidder may modify or withdraw its bid after the bid's submission, prior to the deadline prescribed for submission of bids.
b. No bid can be modified after the deadline for submission of bids.
c. No bid can be withdrawn in the interval between the deadline for submission of bids and the expiration of the period of bid validity. Withdrawal of a bid during this interval may result in the forfeiture of its bid security (EMD).

6.21 Preparation of Pre-qualification bid

It shall contain of the following parts:
a. General business information
b. Turnover details
c. Experience details
d. Bid security (EMD)
e. Pre-qualification forms and conditions as per pre-qualification criteria

6.22 General business information

The bidder shall furnish general business information to facilitate assessment of its professional, technical and commercial capacity and reputation.

6.23 Bid Security i.e. Earnest Money Deposit (EMD)

a. The bidder shall furnish, as part of its bid, a bid security for the amount specified in the tender call notice.
b. The bid security is required by APTS to:
    i. Assure bidder's continued interest till award of contract and
    ii. Conduct in accordance with bid conditions during the bid evaluation process.
c. The bid security shall be in Indian rupees and shall be a bank guarantee, or an irrevocable letter of credit or cashier's certified check, issued by a reputable bank scheduled in India and having at least one branch office in Vijayawada.

d. Unsuccessful bidder's bid security will be discharged or returned as promptly as possible but not later than thirty (30) days after the expiration of the period of bid validity prescribed by APTS.
e. The successful bidder's bid security will be discharged upon the bidder signing the contract, and furnishing the Performance Security,
f. The bid security may be forfeited:
    i. if a bidder withdraws its bid during the period of bid validity or
    ii. in the case of a successful bidder, if the bidder fails:
        a) To sign the contract in time; (or)
        b) To furnish performance security.

6.24 Preparation of Technical Bid

It shall consist of the following parts.
a. Acceptance/ Deviation statement
b. Statement of technical staff.
c. Plan and methodology for execution of project.

6.25 Preparation of Financial Bid

a. Overview of financial bid

The financial bid should provide cost calculations corresponding to each component of the project.

b. Bid Prices

i. The bidder shall indicate the unit prices (where applicable) and the total bid price of the goods/services it proposes to supply under the contract.
ii. The bidder shall indicate Basic Prices and taxes, duties etc. separately (if required) in the form prescribed.
iii. Bidder’s separation of price components will be solely for the purpose of facilitating the comparison of bids by APTS and will not in any way limit the purchaser’s right to contract on any of the terms offered.
iv. Prices quoted by the bidder shall be fixed during the bidder’s performance of the contract and not subject to variation on any account unless otherwise specified in the tender call. A bid submitted with an adjustable price quotation will be treated as nonresponsive and will be rejected.

c. Bid Currency

Prices shall be quoted in Indian rupees (INR).

6.26 Intellectual Property Rights, Confidentiality and Data Protection

All reports, documents, specifications, assessments, designs, recommendations, studies, working papers, records, software configurations, architecture documents, and other deliverables prepared, developed, or submitted by the Technical Advisory Agency (TAA) under this engagement shall become the exclusive property of the ITE&C Department/APTS. The TAA shall not use, reproduce, disclose, distribute, or publish any such deliverables without the prior written approval of the ITE&C Department/APTS.

6.27 Confidentiality and Protection of Government Information

The Technical Advisory Agency (TAA), its personnel, subcontractors, and representatives shall maintain strict confidentiality of all information, data, documents, network diagrams, security configurations, application details, operational procedures, audit findings, and any other

information relating to APSDC, the Disaster Recovery Centre, Government applications, and associated infrastructure. Such information shall not be disclosed to any third party without the prior written consent of the ITE&C Department/APTS. The confidentiality obligations shall survive the expiry or termination of the contract. The TAA shall implement appropriate administrative, technical, and physical safeguards to protect Government information from unauthorized access, disclosure, alteration, or loss.

7 General instructions to bidders

7.1 Application

These general conditions shall apply to the extent that they are not superseded by provisions of other parts of the contract.

7.2 APTS Responsibilities

a. APTS shall share the RFP/Contract agreements of the various Service Providers at APSDC to the successful bidder.
b. The physical, IT (software & Hardware), PoP infrastructure, VC infrastructure, Client peripherals (Desktops, Printers & Scanners) and Non-IT asset list of APSDC.
c. Necessary physical access at respective sites and access to NMS/EMS reports and related systems at all the project sites shall be provided to the TAA, ITE&C Department/APTS shall provide seating space to TAA team at APTS, APSDC location with facilities like furniture, internet, power connection, telephone connection etc.
d. APTS is designated Agency for Security and Compliance Audit, Network Audit Reports/ Certifications, the same is not covered in the TAA scope.
e. Facilitate permissions from government bodies for DR center establishment - police, fire, R&B and other departments and execute all papers.
f. The professional fees quoted by the Technical Advisory Agency (TAA) shall be exclusive of approved Travel, boarding, lodging, local conveyance, and other project-related expenses incurred by the TAA personnel for official visits to APSDC, the Disaster Recovery (DR) Centre, Government offices, stakeholder meetings, site inspections, audits, testing activities, and other project-related assignments specifically authorized by ITE&C Department/APTS shall be reimbursed at actuals upon submission of supporting documents and invoices. TAA to obtain a prior approval from APTS/ITE&C department on the expenses before incurring.

7.3 Other terms and conditions

a. The TAA Agency shall comply to the directions of APTS/ ITE&C Department which may issue directions from time to time for smooth working and in the furtherance of the overall objective.
b. The TAA agency shall be solely responsible for all acts of omission and commission occasioned by his personnel in carrying out the terms of the agreement.
c. The TAA Agency or his personnel shall not use or cause to be used, the data or information provided to him or acquired by him during the process of providing services for any purpose, whatsoever, except for, which is required to perform the job as required in the agreement. Such data or information shall be surrendered to the Department at the expiry of the agreement.

7.4 Conflict of Interest (CoI) Clause

To ensure transparency and integrity in the procurement process, the selected TAA shall adhere to strict Conflict of Interest provisions.

The TAA, including its parent entity, subsidiaries, affiliates, consortium partners, or associated entities, shall be strictly prohibited from:

a. Participating, directly or indirectly, as a bidder for the DR Service Provider contract.
b. Associating with, advising, or supporting any bidder participating in the DR project.
c. Having any financial or non-financial interest that may influence the impartial discharge of its advisory responsibilities.

The TAA shall provide a formal declaration confirming the absence of any conflict of interest at the time of engagement and throughout the contract period. Any violation of this provision shall result in disqualification, termination of contract, and other actions as deemed appropriate by the Government.

The TAA shall function as an independent advisor and shall not have any direct or indirect commercial interest in the DR Service Provider, subcontractors, OEMs, or associated entities.

7.5 Outline of bid evaluation procedure

a. The bid opening and evaluation process will be sequential in nature. Means that bidder must qualify a particular stage to be eligible for next stage. Immediately after the closing time, the APTS contact person shall open the Pre-qualification bids and list them for further evaluation. The Technical and financial bid covers shall be listed and put into a bag to be sealed according to APTS procedure. The sealed bag of technical and financial bids shall be in custody of a designated officer for opening after evaluation of Pre-qualification bids. Thereafter, Technical bids of qualified bidders will be opened, keeping financial bid in sealed bag. Finally, financial bids of those bidders will be opened who are short listed in technical evaluation.
b. In case of composite bid - technical and financial bids combined together, first technical evaluation will be done followed by financial evaluation of only those bids which have qualified in technical evaluation.
c. Any participating bidder may depute a representative to witness these processes.
d. The standard procedure described here will stand appropriately modified, in view of special procedures of bid evaluation as mentioned in tender call or elsewhere in this bid document or APTS may deviate from these in specific circumstances if it feels that such deviation is unavoidable, or will improve speed of processing and consequent project execution.

7.6 Opening of bids

a. Bids will be opened on the e-Procurement web site at the scheduled time & date.
b. The bidders names, bid modifications or withdrawals, discounts, and the presence or absence of requisite bid security and such other details as the APTS officer at his/her discretion, may consider appropriate, will be announced at the opening. No bid shall be rejected at bid opening, except for late bids, which shall be returned unopened.
c. Bids that are not opened and read out at bid opening shall not be considered further for evaluation, irrespective of the circumstances. Withdrawn bids will be returned unopened to the bidders.

7.7 Clarification of bids

During evaluation of the bids, APTS may, at its discretion, ask the bidder for clarification of its bid.

7.8 Preliminary examination

a. Preliminary scrutiny will be made to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed, and whether the bids are generally in order.
b. Arithmetical errors will be rectified on the following basis. If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected. If the bidder does not accept the correction of the errors, its bid will be rejected, and its bid security may be forfeited. If there is a discrepancy between words and figures, the amount in words will prevail.
c. APTS may waive any minor informality, nonconformity or irregularity in a bid which does not constitute a material deviation, provided such waiver does not prejudice or affect the relative ranking of any bidder.
d. Prior to the detailed evaluation, APTS will determine the substantial responsiveness of each bid to the bidding documents. For purposes of these clauses, a substantially responsive bid is one which conforms to all the terms and conditions of the bidding documents without material deviations.
e. If a bid is not substantially responsive, it will be rejected by the APTS and may not subsequently be made responsive by the bidder by correction of the nonconformity.

7.9 Contacting APTS

a. The bidder shall not approach APTS officers outside of office hours and/ or outside APTS office premises, from the time of the tender call notice to the time the contract is awarded. Any effort by a bidder to influence APTS officers in the decisions on bid evaluation, bid comparison or contract award may result in rejection of the bidder's offer and bidder may also marked as ineligible for future bids. If the bidder wishes to bring additional information to the notice of the APTS, it should do so in writing.

7.10 Negotiations

Based on the circumstances, APTS reserves its right to negotiate on technical parameters/ commercial bid with the “Successful Bidder". Contract will be awarded to the ‘**Successful Bidder’**, after negotiations, if any.

7.11 Award criteria

Final choice of firm to execute this project shall be made on the basis of conformity to technical requirements, appropriateness of the product/services offered, appropriateness of financial offer from the point of view of cost-effectiveness, total cost of ownership over entire contract period for the product/services and past track record of bidder.

7.12 APTS’ right to vary quantities at time of Award

IT&C Department/ APTS may take additional resources if required at the same rates finalized in the tender, during the validity of the contract period. Additional payments shall be considered only for resources specifically requested and approved by ITE&C Department/APTS beyond the contracted team strength. Any resources deployed at the bidder's discretion for meeting

contractual commitments shall not attract any additional payment to TAA.

7.13 APTS' right to accept any bid and to reject any or all bids.

APTS reserves the right to accept or reject any bid, and to annual the bidding process and reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected bidder(s) or any obligation to inform the affected bidder(s) of the grounds for such decision.

7.14 Notification of award

a. Prior to expiration of the period of bid validity, APTS will notify the successful bidder in writing, that its bid has been accepted.
b. Upon the successful bidder's furnishing of Performance Security, APTS will promptly notify each unsuccessful bidder and will discharge its bid security.

7.15 Signing of contract

a. At the same time as the APTS notifies the successful bidder that its bid has been accepted, the APTS will send the bidder the contract Form (Sl.No.16) provided in the bidding documents, incorporating all agreements between the parties.
b. On receipt of the Contract Form, the selected TAA shall sign and date the contract and return it to the APTS.

7.16 Performance Security

a. On receipt of notification of award from the APTS, the successful bidder shall furnish the Performance Security in accordance with the conditions of contract, in the Performance Security form (Sl.No.18) provided in the bidding documents or in another form acceptable to the APTS.
b. Failure of the successful bidder to sign the contract, proposed in this document and as may be modified, elaborated or amended through the award letter, shall constitute sufficient grounds for the annulment of the award and forfeiture of the bid security, in which event the APTS may make the award to another bidder or call for new bids.

7.17 Corrupt, fraudulent and unethical practices

a. "Corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the process of contract execution and
b. "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to detriment of the purchaser, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Purchaser of the benefits of free and open competition:
c. "Unethical practice" means any activity on the part of bidder which tries to circumvent tender process in any way. Unsolicited offering of discounts, reduction in financial bid amount, upward revision of quality of goods etc after opening of financial bids will be treated as unethical practice.
d. APTS will reject a proposal for award and also may debar the bidder for future tenders in APTS, if it determines that the bidder has engaged in corrupt, fraudulent or unethical practices in competing for, or in executing a contract.

7.18 Delays in the Service Provider's Performance

a. Delivery of the services shall be made by the Vendor in accordance with the service quality specified by APTS in the bid document.
b. Any delay by the bidder in the performance of its obligations under the contract, shall

render the bidder liable to the imposition of liquidated damages at a rate as indicated in bid document.

c. If at any time during performance of the Contract, the Vendor should encounter conditions impending timely performance of services, the Vendor shall promptly notify the APTS in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the bidder's notice, APTS shall evaluate the situation and may at its discretion extend the Vendor's time for performance, with or without liquidated damages.

7.19 Liquidated Damages

If the Vendor fails to perform any one or all the services within the time period(s) specified in the Contract, the APTS shall, without prejudice to its other remedies under the Contract, deduct from the amount payable to bidder or from Performance/ Implementation Guarantee or from both as liquidated damages, a sum equivalent to, as per the terms indicated in the bid document, until actual delivery or performance, subject to maximum limit. Once the maximum is reached, the APTS may consider termination of the contract, overall liability of the selected TAA is limited to the contract value.

7.20 Implementation Guarantee/ Performance Security

a. Within the number of days indicated in the bid document, from the date of issue of letter of intent from APTS/user, TAA Agency should submit Security deposit for an amount indicated in the bid document (Statement of important limits/values)
b. The proceed of the Performance Security shall be payable to the APTS as compensation for any loss resulting from the TAA agency's failure to complete its obligations under the contract.
c. The Performance Security shall be denominated in Indian Rupees or in a freely convertible currency acceptable to APTS and shall be in one of the following forms:
d. A Bank Guarantee or an irrevocable Letter of Credit, issued by a reputed bank located in India with at least one branch office in Vijayawada, in the form provided in the bidding document or another form acceptable to the APTS; or
e. A Cashier's Cheque or Banker's Certified Cheque or crossed Demand Draft or Pay Order drawn in favor of the APTS.
f. The Performance Security will be discharged by the APTS and returned to the Vendor not later than thirty (30) days following the date of completion of all formalities under the contract.
g. In the event of any contract amendment, the bidder shall, within 15 days of receipt of such amendment, furnish the amendment to the performance security, rendering the same valid for the balance duration of the Contract.

7.21 Termination for Default

a. APTS, without prejudice to any other remedy available for breach of Contract, may terminate the Agreement in whole or in part, by a 30 days' notice in writing to the TAA agency, for any one or all of the following. On such termination, in addition to any other remedy available under the contract, the EMD, Implementation/ Performance Security will be liable for forfeiture.

    i. If the TAA agency fails to maintain the systems to the minimum assurance quality as per the scope of the work or
    ii. If the TAA agency fails to provide all or any of the Contracted Services as per Service Standards Specified in the Agreement, or
    iii. If the TAA agency fails to perform any other obligation(s) under the Agreement, or
    iv. If the TAA agency in the judgment of the Dept., or APTS has engaged in corrupt, fraudulent, or unethical practices in competing for or in executing the

Contract.

b. The APTS shall issue a notice explaining the nature of violations committed by the TAA agency and afford an opportunity to the TAA agency to represent his case before termination of the agreement.
c. In the event APTS terminates the Agreement in whole or in part, APTS may procure, upon such terms and in such manner as it deems appropriate, services similar to those undelivered, and the TAA agency shall be liable to pay to APTS for any excess costs incurred for procuring such similar services. However, the TAA agency shall continue performance of the Agreement to the extent not terminated.

7.22 Termination for Insolvency

If the TAA agency becomes bankrupt or otherwise insolvent, APTS, may at any time terminate the Contract by giving written notice of 30 days to the TAA agency. In this event, termination will be without compensation to the TAA agency, provided that such termination shall not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the APTS.

7.23 Termination for Convenience

APTS, may, by written notice to the TAA agency, terminate the Contract, in whole or in part, at any time for its convenience. The notice of termination shall specify that the termination is for its convenience, and the extent to which performance of the TAA agency under the Contract is completed.

In such an event, the APTS, may elect to pay to the TAA agency, a mutually agreed amount for partially completed services, within 30 days from the date of termination of contract.

7.24 Force Majeure

a. The TAA agency shall not be liable for forfeiture or levy of Liquidated Damages, or termination for default if and to the extent that its delay in performance or other failure to perform its obligations under the Agreement in the result of Force Majeure.
b. For purposes of this Clause, “Force Majeure” means an unforeseeable event beyond the control of the TAA agency and not involving the TAA agency’s fault or negligence. Such events shall include, but are not restricted to, acts of the APTS, in its sovereign capacity, war or revolutions, fires, floods, epidemics, quarantine restrictions and freight embargoes.
c. If a Force Majeure situation arises, the TAA agency shall promptly notify the APTS, in writing of such condition and the cause thereof. Unless otherwise directed by the APTS., in writing, the TAA agency shall continue to perform its obligations under the Contract as far as is reasonably practical and shall seek all reasonable alternative means for performances.

7.25 Participation of Consortium

The TAA agency shall not assign, in whole origin part, its rights and obligations to perform under this Contract to any third party.

a. Bidders may participate either as a single entity or as a consortium.
b. The consortium shall have a Lead Bidder, who shall be mandatorily the Service provider. The Lead Bidder will be solely responsible for overall coordination, contract execution, and communication with APTS through out the contract period which includes any contract extensions.
c. The consortium may include partner to undertake DR center design if the Lead Bidder does not have such capabilities.

d. The maximum number of consortium members (including the Lead Bidder) shall not exceed two (02).
e. All consortium members shall sign the contract and be jointly and severally liable for the successful execution of the entire project.
f. APTS will correspond only with the Lead Bidder for all contractual and administrative purposes.
g. All consortium partners must remain engaged throughout the contract period. Any change in consortium composition post-award shall require prior written approval of APTS.
h. The consortium shall constitute committee with representatives from both partners. ITE&C Dept/APTS have the right to participate in meetings especially for progress reviews.

7.26 Amendment to the Agreement

Amendments to the Agreement may be made by mutual agreement by both the parties i.e APTS and Lead bidder. No variation in or modification in the terms of Contract shall be made except by written amendment signed by both the parties.

7.27 Applicable Law

The Agreement shall be interpreted in accordance with appropriate Indian laws.

7.28 Resolution of Disputes

a. APTS and the TAA agency shall make every effort to resolve amicably by direct informal negotiations any disagreement or dispute arising between them under or in connection with the Agreement.
b. If, with in thirty (30) days from the commencement of such informal negotiations, parties are unable to resolve dispute amicably, either party may approach for resolution to the formal mechanisms, which may include, but are not restricted to, conciliation mediated by a third party, or in accordance with the Arbitration and Conciliation Act, 1996
c. All Arbitration proceedings shall be held within the Jurisdiction of Vijayawada (AP) and the language of the arbitration proceedings and that of all documents and communications between the parties shall be in English language.

7.29 Use of Contract Documents and Information

a. The TAA agency or its employee shall not without prior written consent from APTS, disclose the Agreement or any provision thereof or any specification, plans, drawings, pattern, samples or information furnished by or on behalf of APTS, to any party during the contract and thereafter. Disclosure of such information to its employee shall be made in confidence and shall extend only so far, as may be necessary for such performance.
b. The TAA agency shall not without prior written consent of APTS, make use of any document or information made available for the project except for purposes of performing the contract and no more.
c. The selected Agency shall be allowed to retain sufficient documentation as part of professional records to support and evidence the work performed by it. Such retention shall be subject to obligations of confidentiality mentioned in the RFP.

7.30 Governing Language

All correspondence and documents pertaining to the Agreement that are exchanged by the parties shall be written in English or Telugu language.

7.31 Notices:

a. Any notice given by one party to the other pursuant to this Agreement shall be sent to the other party in writing or by E-mail, Telegram or facsimile and confirmed in writing to the other party's address.

b. A notice shall be effective from the date, when it is delivered or tendered or affixed at a conspicuous place of normal working, whichever is earlier.

7.32 Indemnification

APTS or GoAP will not indemnify for any loss or damages caused to the vendor or its staff in any form during their performance on the project.

7.33 Taxes and duties

The bidder shall be entirely responsible for all taxes including service taxes etc. Duties, license fee, Octroi, road permits etc. incurred until delivery of the contracted Goods/Services at the site of the user or as per the terms of tender document if specifically mentioned. During the contract period if any changes in the existing tax structure (Service tax or GST) it shall be applicable to both (GoAP/ Service Provider) as per rule.

7.34 Special Conditions of Contract (SCC)

a. The list of documents to be submitted to APTS for processing payment as follows:

i. Payment shall be made quarterly through CFMS / Online.
ii. Invoice including professional fees, expense reimbursements if any to be raised in the name of user department i.e. The Secretary to Govt., ITE&C Department, Govt. of AP, AP Secretariat, IGC-Velagapudi, Amaravati, Guntur District, AP.
iii. Approval on deliverables, expenses by APTS/ ITE&C department.

8 Scope of work

The ITE&C Department, GoAP is in the process of establishing a Greenfield Disaster Recovery (DR) Centre under the BOOT (Build-Own-Operate-Transfer) model at IIDT campus in Tirupati. In this context, the Department seeks to engage a Technical Advisory Agency (TAA) to act as a technical, operational, and strategic advisor for the establishment, implementation, and monitoring of the Disaster Recovery (DR) Centre and associated Primary Data Centre (DC) operations.

8.1 Project Scope and Approach

8.1.1 Technical Advisory Agency (TAA) Responsibilities

a. The selected **Technical Advisory Agency (TAA)** shall function as an Advisory Unit to the ITE&C Department for the establishment of the Disaster Recovery (DR) Centre under the BOOT (Build-Own-Operate-Transfer) model, and for monitoring of the Primary Data Centre (DC) and DR sites.

b. The TAA shall provide continuous advisory support to the ITE&C Department, GoAP on all technical, operational, contractual, and financial aspects related to the Data Centre and DR operations. This includes assisting in contract management, reviewing change requests and variation orders, and providing inputs for policy and governance decisions. The agency shall ensure that the Department's interests are safeguarded and that all activities are carried out in a transparent and accountable manner. The TAA shall report to Director (Communications) / Joint Director (Infrastructure), ITE&C Department, Government of Andhra Pradesh (GoAP). TAA shall be stationed within the premises of the ITE&C Department and shall visit the Primary DC and Disaster Recovery (DR) sites, as and when required, for project-related activities and coordination. Workspace and seating arrangements will be provided by the ITE&C department. TAA should make all required visits to the Primary DC and DR sites and travel requirements shall be communicated to ITE&C department/APTS and obtain prior approval. All expenses to be borne by TAA and on actual basis the same be reimbursed by ITE&C department/APTS.

c. The overall responsibilities of the TAA shall include:

i. Assessment, monitoring, optimization, and Business Continuity Planning (BCP) framework development for the existing Primary Data Centre (DC).
ii. Guide and support the procurement of the Master Service Provider for Non-IT, IT Infrastructure and Operations through preparation of RFP documents, technical specifications, bid management, and technical summarization and evaluation, while undertaking the design and technical advisory responsibilities for the DR Centre within the TAA scope.
iii. Support in preparation of the Detailed Project Report (DPR)
iv. Provide advisory support throughout the planning, design, implementation, testing, commissioning, and operational readiness phases of the DR Centre Infrastructure in alignment with Tier III (or higher) standards and industry best practices.
v. Provide Program Management Unit (PMU) services, including project monitoring, milestone tracking, risk and issue management, quality assurance, and periodic progress reporting throughout the project lifecycle.
vi. Support the ITE&C Department in achieving applicable certifications and compliance requirements, including Uptime Institute Tier Certification, TIA-942, ISO/IEC 20000, ISO/IEC 27001, and other relevant standards as applicable.
vii. Prepare, review, maintain, and submit all project-related reports, plans, designs, governance documents, technical deliverables, and other documentation required during the engagement.
viii. Coordinate and liaise with service providers, OEMs, implementation partners, and other stakeholders to facilitate timely execution and successful establishment of the DR Centre.
ix. Facilitate stakeholder coordination, governance reviews, project communications, and decision-making support across all phases of the project.
x. Provide strategic advisory support for IT governance, service management, commercial and contractual matters, service-level monitoring, and overall lifecycle management of the Primary Data Centre and Disaster Recovery Centre environments.
xi. The TAA shall provide advisory, coordination, monitoring, and compliance support for achieving the specified certifications; however, the award of such certifications shall be subject to the compliance of all concerned stakeholders and the assessment of the respective certification bodies

8.2 Delivery Schedule

S. No.	Phase	Part	Milestone	Timeline
1	**Phase I**	**Selection of TAA**	Issuance of Letter of Intent (LoI) / Notification of Award	T
2	**Phase I**	**Selection of TAA**	Signing of contract	T+7 Days
3	**Phase I**	**Selection of TAA**	Mobilization and Deployment of Resources	T + 14 Days

S. No.	Phase	Part	Milestone	Timeline
4	**Phase I – Advisory, Procurement Support & Implementation Oversight (18 Months)**	**Part A – Existing DC Monitoring and DR Centre Design**	Continuous Monitoring, Performance Assessment, Capacity Review and Technical Advisory Support for Existing State Data Centre (SDC) Infrastructure and Operations	From T + 14 Days to T + 18 Months
5			Submission of DR Centre Design and associated technical requirements	T + 21 Days
6			Completion of DR Centre Design and submission of design documents	T + 2 Months
7			As-Is Assessment of Existing Data Centre Infrastructure and Submission of Gap Analysis & Way Forward Report for Establishment of Disaster Recovery Centre	T + 3 Months
8		**Part B – DPR and Master Service Provider Procurement Support**	Support in Preparation and Finalization of Detailed Project Report (DPR)	T + 4 Months
9			Support in Preparation and Finalization of MSP Tender / RFP Documents	T + 5 Months
10			Support in Onboarding of Master Service Provider	T + 8 Months
11		**Part C – MSP Implementation Oversight and DR Centre Deployment Support**	MSP Implementation Oversight and DR Centre Deployment including Delivery, Installation & Commissioning, Configuration, FAT	From T + 8 Months to T + 18 Months

S. No.	Phase	Part	Milestone	Timeline
			and Go-Live of IT Infrastructure	
12	**Phase II – PMU Support for Operations & Maintenance (36 Months)**		PMU Support for Data Centre (DC) and Disaster Recovery (DR) Infrastructure Operations, Managed Services Oversight, SLA Monitoring, Performance Review and Contract Management Support	From T + 18 Months to T + 54 Months

Note:

- Any delay attributable to Department/APTS/MSP shall not be attributable to TAA.
- The scope and timelines under the RFP shall be governed by the approved project requirements, Any delay attributable to Department/APTS/MSP shall not be attributable to TAA

8.3 Detailed Scope of Work

8.3.1 As-Is Assessment and DR/BCP Requirements Framework

a. The Technical Advisory Agency (TAA) shall undertake a comprehensive assessment of the existing Primary Data Centre ecosystem, including applications, databases, compute infrastructure, storage systems, network infrastructure, cybersecurity controls, backup systems, IT operations, and associated interdependencies. The assessment of cybersecurity controls shall be carried out as part of the overall Data Centre assessment in accordance with the requirements of the ITE&C Department, Industry best practices along and all applicable provisions of the RFP.
b. The assessment shall include inventory validation, application dependency mapping, workload criticality analysis, capacity utilization assessment, technology lifecycle review, and evaluation of existing operational procedures. All dependencies with applications, external systems and third-party integrations would be provided by agency operating DC. Mapping and business criticality assessment is applicable for entire DC ecosystem but not limited to internal, external dependencies on applications, data, users, third party integrations.
c. The TAA shall identify critical business services, assess current Disaster Recovery (DR) readiness, evaluate existing Business Continuity Planning (BCP) mechanisms, and identify gaps, risks, vulnerabilities, and operational constraints.
d. Based on the assessment findings, the TAA shall define application-wise Recovery Point Objectives (RPOs), Recovery Time Objectives (RTOs), service criticality classifications, DR tiers, and business continuity requirements aligned with Government objectives and industry best practices.
e. The TAA shall prepare a comprehensive DR and BCP Requirements Framework, forming the basis for planning, design, procurement, implementation, and governance of the proposed DR Centre IT Infrastructure.

8.3.2 Primary Data Centre Optimization

a. From project initiation, the TAA shall review and assess the existing Primary Data Centre environment from operational, performance, availability, capacity, security, and DR readiness perspectives.

b. The TAA shall review infrastructure utilization trends, operational risks, service performance, backup and recovery processes, cybersecurity posture, and capacity requirements to support future DR integration.
c. The TAA shall periodically provide recommendations for performance optimization, risk mitigation, capacity enhancement, resilience improvement, and alignment with DR and BCP objectives.
d. The TAA shall act as an independent advisory body and provide timely updates, observations, recommendations, and governance inputs to ITE&C Department/APTS throughout the engagement.

8.3.3 Data centre Design, Engineering and Procurement Support

a. The TAA shall prepare planning, design, engineering, and preparation of detailed design documents for the Non-IT infrastructure of the proposed Disaster Recovery (DR) Centre.
b. The TAA shall define the scope of work, technical specifications, eligibility criteria, evaluation methodology, deliverables, timelines, and contract conditions required for implementation of the proposed DR Centre.
c. The TAA shall support the Department throughout the procurement process, including preparation of bid documents, response to bidder queries, bid evaluation support, contract finalization, and onboarding of the Master Service Provider (MSP).
d. The TAA shall be responsible for preparation of detailed designs, drawings, technical specifications, estimates, DPR preparation, RFP preparation, and onboarding of Master Service Provider (MSP), including but not limited to the following areas:

i. Building, Architectural and Civil Design including site planning, structural design, office spaces, NOC areas, utility areas, interior layouts, landscaping, parking, and compliance with applicable building codes and green building standards.
ii. Electrical and Power Infrastructure Design including transformers, HT/LT systems, UPS systems, DG sets, power distribution architecture, grounding and earthing systems, energy efficiency measures, renewable energy integration, and redundancy design.
iii. HVAC and Cooling System Design including precision cooling systems, cooling architecture, hot aisle/cold aisle containment, environmental controls, ventilation systems, and energy-efficient cooling strategies.
iv. Fire Detection, Fire Suppression and Environmental Safety Design including fire detection systems, gas-based fire suppression systems, emergency response mechanisms, evacuation planning, rodent control, and regulatory compliance.
v. Physical Security, Access Control and Surveillance Design including access control systems, CCTV surveillance, building security systems, Building Management System (BMS), and integrated monitoring solutions.
vi. Data Centre Facility and White Space Design including data halls, rack layouts, equipment placement, cable routing, environmental monitoring systems, NOC facilities, and supporting operational areas.
vii. Network and Connectivity Design including structured cabling systems, optical fibre backbone, network architecture, connectivity planning, bandwidth sizing, and future-ready networking infrastructure.
viii. Bill of Quantities (BoQ), Cost Estimates and Tender Documentation including preparation of engineering estimates, technical specifications, drawings, bidding documents, and other inputs required for Civil and Non-IT procurement.

8.3.4 DPR Preparation and DR IT Infrastructure Planning

a. Based on the approved assessment findings, the TAA shall support the Department in preparation of a comprehensive Detailed Project Report (DPR) for establishment of the Disaster Recovery (DR) Centre. The TAA shall be responsible for development of the DPR covering Civil, Non-IT and IT infrastructure components, including architecture, technology framework, system requirements, implementation approach, cost estimates, and associated implementation considerations.
b. The TAA shall provide technical inputs and guidance for preparation of the DPR covering IT infrastructure sizing, technology architecture, platform recommendations, network and security architecture, capacity planning, business continuity and disaster recovery requirements, integration requirements, implementation approach, operational framework, and IT-related cost estimations. The TAA shall ensure seamless integration of Civil, Non-IT and IT infrastructure requirements within the DPR.
c. The TAA shall define the target-state IT architecture, DR operating model, service level requirements, technology standards, cybersecurity requirements, scalability provisions, resilience mechanisms, and future growth considerations. The TAA shall ensure alignment between the proposed IT infrastructure and the underlying Civil and Non-IT infrastructure design.
d. The TAA shall review and provide recommendations to ensure that the overall DPR, including all Civil, Non-IT and IT components prepared by the TAA, is aligned with applicable Government policies, regulatory requirements, security guidelines, industry standards, and established best practices for Data Centre and Disaster Recovery environments.

8.3.5 RFP Preparation and Master Service Provider (MSP) Selection Support

a. The TAA shall prepare a comprehensive RFP for selection of a Master Service Provider (MSP) for end-to-end establishment of the Disaster Recovery (DR) Centre, including Civil, Non-IT, and IT infrastructure components.
b. The TAA shall be responsible for defining the scope, technical requirements, designs, drawings, specifications, standards, BoQ, technology architecture, security requirements, service levels, operational requirements, and implementation approach for Civil, Non-IT, and IT infrastructure components. The TAA shall ensure integration, consistency, and completeness across all components of the RFP.
c. The RFP shall include detailed Scope of Work, technical specifications, BoQ, implementation timelines, testing and commissioning requirements, service levels, acceptance criteria, compliance requirements, governance framework, and payment mechanisms for the DR Centre.
d. The TAA shall provide overall bid process management support, including preparation of bid documents, bidder query management, bid summarization, compliance assessment, technical evaluation, comparative analysis, and bid summarization reports. The TAA shall be responsible for evaluation and technical assessment of Civil, Non-IT, and IT infrastructure-related components during the bid process.
e. The TAA shall assist the Department in conducting pre-bid meetings, preparation of corrigenda, responses to bidder queries, technical presentations, demonstrations, and bid summarization activities. The TAA shall support evaluation, clarification, and bid assessment activities related to Civil, Non-IT, and IT infrastructure components.

8.3.6 Construction Phase Coordination

a. The TAA shall provide advisory, technical, and coordination support during the construction and facility readiness phases of the DR Centre, including design-related review and

coordination, to ensure alignment with the approved project requirements and implementation objectives.

b. The TAA shall review and monitor implementation progress, identify potential risks, dependencies, interface requirements, and facility readiness issues that may impact subsequent project activities and overall project timelines, and provide appropriate technical recommendations for their resolution.
c. The TAA shall provide recommendations, observations, and periodic status updates to the ITE&C Department/APTS to facilitate effective decision-making, stakeholder coordination, and smooth project execution.
d. The TAA may, as required by the Department, deploy domain-specific experts for specialized assessments, design and technical reviews, project monitoring, compliance verification, and readiness validations.

8.3.7 Design of DR IT Infrastructure by TAA

a. Design the compute environment covering server sizing, virtualization platforms, clustering, high availability, workload distribution, resource optimization, and future scalability requirements.
b. Design the storage architecture covering block, file, object, backup, archive, replication, and recovery environments.
c. Design the network architecture covering LAN, WAN, routing, switching, load balancing, redundancy, network segmentation, connectivity requirements, and operational resilience.
d. Design the cybersecurity architecture covering firewalls, IDS/IPS, SIEM integration, SOC integration, IAM controls, privileged access management, encryption, vulnerability management, and Zero Trust principles.
e. Develop the DR architecture covering data replication mechanisms, failover and failback strategy, DR orchestration, DR automation, recovery procedures, and DR validation framework.
f. Define monitoring, observability, performance management, configuration management, automation, alerting, reporting, and operational governance frameworks.
g. Prepare architecture diagrams, design documents, technical specifications, BoQ/BoM, implementation methodology, migration strategy, testing plans, commissioning plans, and associated technical documentation.
h. The TAA shall prepare detailed implementation-ready IT infrastructure designs, including BoQ/BoM with quantities, technical specifications and configurations. At the design stage - the technical specifications are OEM neutral, without specifying any OEM/make/model.

8.3.8 Implementation Supervision and Program Management

a. The TAA shall act as the Program Management Unit (PMU) for implementation of the DR Centre IT Infrastructure. and provide implementation supervision, design review and technical oversight, all design-related responsibilities shall be within the scope of the TAA.
b. The TAA shall monitor implementation activities, review detailed designs, validate technical deliverables, monitor milestones, track project schedules, and ensure compliance with approved requirements.
c. The TAA shall facilitate risk management, issue resolution, dependency management, quality assurance, governance reviews, and implementation oversight throughout the project lifecycle.
d. The TAA shall submit periodic progress reports and provide recommendations to ensure timely and successful completion of the project.
e. The TAA shall not function as the executing agency or implementation contractor. The physical execution, supply, installation, integration, testing, commissioning and migration, Go-Live, PAT/FAT/SAT shall be the responsibility of the selected MSP.

8.3.9 Testing, Commissioning and Go-Live Support

a. The TAA shall be responsible for defining, supervising, reviewing and validating of testing, commissioning and Go-Live activities and reporting for the DR Centre. The TAA shall verify compliance and provide recommendations for operational acceptance and Go-Live readiness.
b. Testing activities shall include FAT, SAT, infrastructure validation, security validation, failover and failback testing, performance testing, DR drills, backup recovery validation, and replication testing.
c. The TAA shall verify compliance with defined requirements, service levels, RPOs, and RTOs.
d. Upon successful completion of testing, the TAA shall recommend operational acceptance and Go-Live readiness of the DR Centre.

8.3.10 Data Replication, Cybersecurity and DR Readiness Monitoring

a. The TAA shall establish a governance framework for monitoring data replication, DR readiness, cybersecurity posture, and business continuity preparedness.
b. The TAA shall periodically review replication performance, DR readiness indicators, DR test results, security controls, vulnerability assessments, and compliance with defined RPO and RTO requirements.
c. The TAA shall ensure conduct of at least two (2) DR drills annually during the O&M period and provide recommendations for continuous improvement. TAA shall be responsible for coordinating and facilitating the DR drills and actively conducting them through MSP. TAA is also responsible for DR drill report and recommendations.
d. The TAA shall review and advise on SOC integration, SIEM integration, IAM controls, backup security, ransomware protection mechanisms, network security architecture, and compliance with applicable cybersecurity requirements.
e. The TAA's role shall be limited to review, monitoring, validation and advisory support, and shall not include hands-on technical execution, configuration, security testing or certification activities.

8.3.11 O&M Period – DC-DR Governance and Strategic Advisory

a. During the Operations and Maintenance phase, the TAA shall act as an independent advisory and governance body for both the Primary Data Centre and Disaster Recovery Centre.
b. During the O&M phase, the TAA shall be responsible for governance, monitoring, performance review, review and advisory support, while operational performance, uptime, incident management, security incidents and service delivery, security breaches, service deficiencies shall remain the responsibility of the MSP.
c. The TAA shall oversee DR readiness, BCP compliance, performance trends, capacity planning, health infrastructure, technology risks, service quality, and strategic improvements.
d. Operational responsibilities including incident management, hardware maintenance, routine support, and SLA delivery shall remain with the respective Service Providers.
e. The TAA shall provide governance, review, monitoring and advisory support on cybersecurity and compliance matters, while implementation and conducting security and compliance audits, network audits and certifications shall remain the responsibility of MSP/ITE&C department/APTS.

8.3.12 Documentation and Reporting

a. The TAA shall maintain comprehensive documentation throughout the project lifecycle.
b. Documentation shall include assessment reports, DPR, design documents, procurement documents, governance reports, testing reports, audit observations, risk registers, project progress reports, and DR drill reports.

c. Monthly and quarterly reports shall be submitted with actionable insights, performance indicators, risk assessments, governance observations, and recommendations.

8.3.13 Stakeholder Coordination and Liaison

a. TAA shall act as a central technical and governance coordination agency between all stakeholders of the proposed program. TAA to coordinate with all stakeholders and take guidance from ITE&C department/APTS from time to time.
b. The TAA shall facilitate communication, coordination, governance reviews, dependency management, issue resolution, and alignment of project activities to ensure successful implementation and operation of the DR Centre.

8.3.14 Project Lifecycle Support and Governance

a. **Phase-I (18 Months)**
   i. **Part-A: Existing Data Centre Monitoring, Assessment and DR Centre Design**
   Continuous monitoring, performance assessment, capacity review, optimization advisory, governance support, and design of the DR Centre within the TAA scope. This phase shall also include assessment of the existing State Data Centre and preparation of a gap analysis and recommendations report for establishment of the Disaster Recovery Centre.
   ii. **Part-B: DR Planning, Design and Procurement Support**
   Support for preparation of the Detailed Project Report (DPR), DR strategy formulation, capacity planning, technical architecture definition, and assistance in preparation and finalization of Master Service Provider (MSP) procurement documents. The phase shall also include procurement support for selection and onboarding of the Master Service Provider (MSP).
   iii. **Part-C: MSP Implementation Oversight and DR Centre Deployment Support**
   Project monitoring and implementation oversight of the Master Service Provider (MSP) for establishment of the Disaster Recovery (DR) Centre, including oversight of implementation against the designs and technical requirements prepared/approved by the TAA. The TAA shall support implementation, testing, commissioning, and Go-Live of the facility, and to monitor adherence to approved designs, specifications, timelines, quality standards, and contractual obligations.
b. **Phase-II (36 Months)**
   i. **DC-DR Operations Governance, Monitoring and Advisory Support**
   Post-implementation PMU support comprising governance, SLA monitoring, operational oversight, service performance review, cybersecurity assessment, DR readiness validation, business continuity monitoring, capacity planning, compliance management, vendor performance review, and strategic advisory support for both the Primary Data Centre and Disaster Recovery Centre during the Operations and Maintenance period.
   The overall engagement period of the TAA shall be fifty-four (54) months from the date of commencement of the assignment.

8.3.15 Knowledge Transfer and Exit Management

1. Prior to completion of the engagement, the TAA shall conduct structured knowledge transfer sessions and handover activities for designated officials of ITE&C Department/APTS.
2. The TAA shall transfer all project-related records, architecture documents, reports, governance documents, DR procedures, BCP procedures, testing reports, audit reports, and operational recommendations.
3. The TAA shall ensure an orderly transition and completion of all contractual obligations before closure of the engagement.
4. Exit/Transition period support is included in the 54 months contract duration and to be initiated at least 3 months before the contract end date.

8.3.16 Manpower Deployment

S.No.	Position	Quantity	Deployment/ Availability
1	Project Manager (Technical Project Manager)	1	Full Time during Contract Tenure
2	Server & Cloud Expert	1	Full time during contract tenure
3	Network & Security Expert	1	Full time during contract tenure
4	DPR/RFP Expert	1	6 months
5	Data Centre Design Expert	1	30 months
6	Subject Matter Expert	1	24 months

a. **Dedicated Resource Deployment**: The selected agency shall deploy dedicated on-site resources for the duration of the engagement as specified in this RFP. All deployed personnel shall possess the necessary qualifications, skills, and relevant experience to effectively perform, manage, and supervise their assigned responsibilities in a timely and professional manner.

b. **Minimum Manpower Requirement**: The manpower requirements specified above are indicative minimum requirements. The selected agency may deploy additional resources, whenever required, to meet project timelines, deliverables, and service levels prescribed under this RFP, at no additional cost to the Department

c. **Manpower Cost Break-up**: The selected agency shall submit a detailed financial break-up of all proposed manpower resources as part of its financial proposal.

d. **Resource Approval**: The proposed resources shall be deployed only after approval by the Department/APTS. In case any proposed resource is not found suitable, the selected agency shall provide an alternate resource of equivalent or higher qualification and experience.

e. **Backup Resources**: The selected agency shall maintain an adequate pool of backup personnel throughout the engagement and shall promptly replace any unavailable resource with an equally qualified and experienced substitute, subject to approval of the Department/APTS.

f. **Replacement of Key Resources**: The selected agency shall endeavour to maintain continuity of the key personnel proposed in the bid. In the event a replacement becomes necessary due to resignation, illness, transfer, non-availability, or any other valid reason, the selected agency shall obtain prior approval of the Department/APTS before deployment of the replacement resource. The proposed replacement shall possess equivalent or higher qualifications and relevant experience. The selected agency shall ensure uninterrupted delivery of services throughout the engagement period.

g. **Leave and Absence Management**: Each deployed resource shall be entitled to a maximum of twenty-four (24) days of planned leave per year. Such leave shall not be treated as absence provided that a suitable substitute resource, approved by the Department/APTS, is deployed during the period of absence.

h. **Deployment of Subject Matter Experts (SMEs)**: In addition to the minimum on-site resources specified in this RFP, the selected agency may utilize its internal Subject Matter Experts (SMEs) and specialized resources for activities such as DPR preparation, RFP

preparation, procurement advisory, bid management, technical reviews, cybersecurity assessments, architecture validation, compliance reviews, legal vetting, commercial assessments, financial analysis, and other specialized assignments, at no additional cost to the Department/APTS. However, the overall responsibility and accountability for delivery of services shall remain with the selected agency. The RFP gives provision to bid for 24 man months of SME. Based on the project requirement the TAA shall deploy the required SMEs in the field of Electrical, Mechanical, Fire Safety and other areas of DC&DR. The SME(s) shall be deployed on site based on the requirement of TAA. The billing shall be as per actual period of deployment capped to 24 months in overall tenure of the 54 months contract.

8.3.17 Design support for Primary site

Government may consider establishment of the Primary Site at any other location. In such an event, the TAA shall provide the same scope of services applicable to the DR Centre under this RFP, including design, technical advisory, implementation supervision, program management, testing and commissioning support, O&M governance and other associated activities, as applicable. The TAA shall also support the planning and migration to the new Primary Site. No additional payment shall be made for such activities.

9 Pre-Qualification, Technical Qualification and Evaluation Methodology

9.1 Pre-Qualification

Consortium Participation: Bids may be submitted either by a single bidder or by a consortium of firms. In case of a consortium, there shall be a Lead Bidder, who shall mandatorily be the Service Provider. The consortium may include partner for establishing the Disaster Recovery (DR) Centre for APSDC, if the Lead Bidder does not have such capabilities in-house.

The Lead Bidder and Consortium Partner shall clearly define and disclose their respective roles, responsibilities, and scope of work and a duly entered consortium agreement excluding commercial values on Rs 100 Non-Judicial stamp paper in the bidder's format covering roles, responsibilities, scope of work to be submitted along with the pre-qualification proposal. The Lead Bidder shall remain solely responsible for overall contract management, coordination, and compliance with the terms and conditions of the Contract. Any change in the allocation of responsibilities after award of the Contract shall require the prior written approval from APTS/ITE&C department.

S.No.	Pre-Qualification Criteria	Supporting Documents
1.	Consortium Bids are permitted. Maximum 2 (two) partners are permitted in the consortium including Lead Bidder. The Lead bidder must be a registered legal entity in India registered as a Company/LLP under Companies Act, 1956/2013 OR Partnerships Firm registered under LLP Act, 2008. and should have presence in India for last 5 (five) years.; and in existence from date of publishing of this RFP.	The following documents are required as proof **(Form P#2) for TAA**: a. Certificates of Incorporation/ Registration Certificates issued by the Registrar of Companies (RoC) along with Bylaws/ MoA & AoA or similar legal documents. b. Copy of Corporate Identification Number (CIN) c. Copy of PAN

S.No.	Pre-Qualification Criteria	Supporting Documents
	In the case of consortium, the bidder is the Lead Bidder, the entire responsibility will be with the Lead Bidder. The bid should be submitted by the Lead Bidder. All the payments will be released / applicable penalty will be levied on Lead Bidder. If the bid is submitted by the Single bidder, the bidder is called 'Bidder/ Sole Bidder'.	d. Consortium agreement in bidder's format
2.	The Consortium Partner must be a registered legal entity in India registered as a Company/LLP under Companies Act, 1956/2013 OR Partnerships Firm registered under LLP Act, 2008. and should have presence in India for last 3 (three) years.; and in existence from date of publishing of this RFP.	The following documents are required as proof **(Form P#2a)**: a. Certificates of Incorporation/ Registration Certificates issued by the Registrar of Companies (RoC) along with Bylaws/ MoA & AoA or similar legal documents. b. Copy of Corporate Identification Number (CIN) c. Copy of PAN Proof of address and contact details
3.	The Lead Bidder shall be empaneled as Category-A with National eGovernance Division (NeGD) and the Consortium partner should have design certification of at least one (1) Tier-II or above Data Centres (Design & Built) certified by Uptime Institute / TIA 942 / similar entity as on bid calling date	Empanelment copy and certification
4.	The Bidder solely (without consortium) should have average annual turnover of Rs. 8 crores during last 3 audited financial years (2022-23, 2023-24, 2024-25). In case of Consortium – the lead bidder should have an average annual turnover of Rs. 7 crores and consortium partner should have an average annual turnover of Rs. 1 crore during last 3 audited financial years (2022-23, 2023-24, 2024-25) individually.	The Lead bidder & Consortium Partner (separately) shall submit Copies of the last three years audited financial statements Audited Balance Sheet and CA Certificate in Form P3 and Form P3a.
5.	Either the Lead Bidder and/or Consortium partner should have experience in executing similar projects for Tier II / Tier-III or above Data Center / Disaster Recovery Center in India during FY 2021-2022, FY 2022-2023, FY 2023-2024, and FY 2024-2025. should have experience in projects - i. One order of value Rs. 4 Crore (or) ii. Two orders of value Rs. 3 Crores each. (or) iii. Three orders of value Rs. 2.25 Crores each "Similar Projects" means onboarding the Managed Service Provider for Data Centre IT infrastructure (Compute, Storage, Network and Cybersecurity) for the Lead Bidder and "Turnkey Design and	Work Order/ Letter of Intent/ Contract Agreement (Form P-4) and RFP published by the client showcasing rack count / certificate issued by client on rack count.

S.No.	Pre-Qualification Criteria	Supporting Documents
	Build/Revamp of Data Center including Civil & Interior, Electrical Lighting & Distribution, Networking, Fire Alarm, Access Control, CCTV, In Row, Rodent Repellent System etc." for Consortium partner	
6.	The Bidder shall have any 2 (two) valid ISO 27001, ISO 20000, ISO 9001 Certifications as on bid submission date.	Valid Copy of Certificate(s) (Form P-2) of either Lead bidder and/or consortium partner
7.	The Lead Bidder & Consortium bidder shall not possess any conflict of interest with the project that would adversely impact the ability of the Bidder to complete the requirements as given in the RFP.	The Lead Bidder & Consortium bidder shall furnish an affirmative statement as to the absence of, actual or potential conflict of interest on the part of the Service Provider due to prior, current, or proposed contracts, engagements, or affiliations with ITE&C Department
8.	The Bidder must have at least 50 fulltime technically qualified personnel on its rolls in any of the areas of IT Consulting, IT Infrastructure, IT Security, IT Procurement, IT and Datacenter Audit, e-Governance, Program/ Project Management, SLA Audit & Monitoring for IT related projects (or) Data Centre Design and Engineering Consulting having relevant degree and shall possess prior experience in providing the above TAA/ Consultancy Services in India as on bid calling date.	Certificate from bidder's HR Department/ authorized signatory on number of qualified professionals on its rolls (Form P-9) (certificate from either Lead bidder and/or consortium partner)
9.	The Bidder (In case of Consortium both lead bidder and consortium partner) must have a team with any **professional certifications** in Project Management – PMP/Prince2/similar /Data Centre Design and Critical Infrastructure – CDCP/CDCS/similar/ IT and Cloud Infrastructure, Server/Operating Systems, Networking,/Cybersecurity/Information Security-CISM/CISSP/CEH/CIH/similar/, IT Service Management – ITIL/similar/ Enterprise Architecture-TOGAF/similar/ Procurement and Financial Management with at least 10 resources overall	Certificate from HR Department/ authorized signatory on number of qualified professionals employed by either lead bidder and/or consortium partner if any (Form P-9a)
10.	The Bidder (In case of Consortium both lead bidder and consortium partner) should give a Declaration that the bidder has not been debarred/ blacklisted as on bid calling date by any Central or State Govt./ Quasi Govt. Departments or organizations for non-satisfactory past performance, corrupt, fraudulent or any other unethical business practices. The bidder should not have any legal disputes with ITE&C or associated depts. Including APTS as on Bid calling date.	Undertaking letter on the Company letterhead to be submitted (Form P-5) by lead bidder and consortium partner if any
11.	The Lead Bidder should have GST registration in the jurisdiction of AP and billing should be done from AP only.	GST registration certificate to be submitted/ uploaded. If no APGST as on bid submission, a declaration to register within

S.No.	Pre-Qualification Criteria	Supporting Documents
		3 months from the date of award of contract Form P-7 Invoice will be processed only, when submitted with APGST number
12.	The Lead Bidder shall submit declaration as Per the GO Ms.12, Dated 08.06.2015	Declaration to be submitted Form P-8
13.	Power of Attorney	Power of attorney authorizing the representative of the Lead bidder & Consortium Partner (separately) to sign the bid against this RFP - Form P-6
14.	In the case of the consortium bid, agreement between the Lead Bidder, Consortium Bidder(s) duly indicating the roles and responsibilities of each bidder shall be submitted.	Copy of the agreement signed by the Lead Bidder, Consortium Bidder(s) shall be submitted. Form P11

Note: Relevant proof of documents in support of above should be furnished along with Pre-Qualification Bid.

9.2 Technical Qualification

#	Evaluation Criteria	Marks Allocation	Maximum Marks	Applicability in case of Consortium
1	The Lead Bidder and /or Consortium partner should have experience in Similar Projects during last 4 years as on RFP issuance date. "Similar Projects" means, for the Lead Bidder, onboarding the Managed Service Provider for Data Centre/ DR center IT infrastructure (Compute, Storage, Network and Cybersecurity), and, for Consortium partner, "Turnkey Design and Build/Revamp of Data Center including Civil & Interior, Electrical Lighting & Distribution, Networking, Fire Alarm, Access Control, CCTV, In Row, Rodent Repellent System and Non-IT Infrastructure etc." in Tier II / Tier-III or above Data Center in India.	Cumulative Value of Similar Projects between Rs. 4 Crores and <= Rs 7 Crores = 10 Marks Cumulative Value of Similar Projects > Rs. 7 Crores to <= Rs. 10 Crores - 15 Marks Cumulative Value of Similar Projects > Rs 10 Crores - 20 Marks	20	Lead Bidder +Consortium partner
2	The Bidder (Incase of Consortium both lead bidder and consortium partner) must have technically qualified workforce of at least 10 (Cumulative) with any professional certifications in Project Management, Data Centre Design and Critical Infrastructure, IT and Cloud Infrastructure, Server/Operating Systems, Networking, Cybersecurity/Information Security, IT Service Management, Enterprise Architecture, Procurement and Financial Management as date of bid submission	10–15 Professionals = 5 Marks 16–20 Professionals = 10 Marks > 20 Professionals = 15 Marks	15	Lead Bidder + Consortium partner if any
	The Bidder solely (without consortium)	Rs. 8 Crore - 5 marks	15	For

#	Evaluation Criteria	Marks Allocation	Maximum Marks	Applicability in case of Consortium
3	should have average annual turnover of Rs. 8 crores during last 3 audited financial years (2022-23, 2023-24, 2024-25). In case of Consortium lead bidder should have average annual turnover of Rs. 7 crores and consortium partner should have average annual turnover of Rs. 1Crore during last 3 audited financial years (2022-23, 2023-24, 2024-25) individually.	Additional 1 Mark for each additional ₹2 Cr subject to maximum to 10 marks.		Consortium if any, turnover may be clubbed
4	Technical Presentation	Scope Understanding = 5 Marks	20	Lead Bidder + Consortium partner if any
		Approach & Methodology = 5 Marks		
		Strategy for DPR, RFP, Procurement Management, Contract Management & Project Implementation = 5 Marks		
		Innovation, Latest Technologies and Overall Presentation = 5 Marks		
5	Quality and Competency of Proposed Team of the Lead Bidder and Consortium partner (The Key Personnel shall be evaluated out of a maximum of 100 marks. The score obtained shall be proportionately converted to a maximum of 30 marks for the purpose of Technical Evaluation. The Key resource evaluation matrix is given at 9.4)	Qualification, Certifications and Relevant Experience	30	Lead Bidder + Consortium partner if any
		Total Marks	**100**	

Note: Minimum absolute technical score to qualify for commercial evaluation is 70 marks out of total 100 marks.

9.3 Qualification Matrix for Key Personnel

#	Position	Minimum Educational Qualification	Minimum Experience	Project Experience	Desirable Certification/ Credential	Rolls
1	**Project Manager (Technical Project Manager)**	BE / B.Tech / ME / M.Tech / MSc IT / MCA/ MBA	a) Overall experience of >8 years b) Relevant experience of >5 years in	Should have managed or coordinated at least 2 Data Centre, DR, Cloud or Large ICT Infrastructure Projects	PMP/, PRINCE2/, ITIL or equivalent Project Management certification	Lead Bidder

#	Position	Minimum Educational Qualification	Minimum Experience	Project Experience	Desirable Certification/ Credential	Rolls
			management of ICT/Data Centre infrastructure projects			
2	**Server & Cloud** **IT Expert**	BE/B.Tech / MCA / MSc IT	a) Overall experience of >6 years b) Relevant experience of >3 years in Data Centre IT Infrastructure Design and Architecture	Should have been involved in at least 2 Greenfield/Brownfield Data Centre/DR Projects, preferably Tier II/III/IV aligned	VCP or equivalent/RHCE/ MCSA/ITIL/MCITP or equivalent	Lead Bidder
3	**Network & Security Expert**	BE/B.Tech / MSC IT/MCA)	a) Overall experience of > 6 years b) Relevant experience of >3 years in Network or Cyber Security Design/Implementation	Should have been involved in at least 2 Greenfield / Brownfield Data Centre/DR projects, preferably Tier II / III / IV aligned.	CCNP/ CISSP/CCNA or equivalent	Lead Bidder
4	**DPR/RFP Expert**	BE/B.Tech	a) Overall experience of > 5 years b) Relevant experience of >3 years in	Should have been involved in at least 1 Greenfield / Brownfield Data Centre /DR projects, preferably Tier II / III / IV aligned in	ITIL/CIPS/CMA or equivalent and relevant experience in DPR/RFP preparation and procurement support for large ICT/Data	Lead Bidder

#	Position	Minimum Educational Qualification	Minimum Experience	Project Experience	Desirable Certification/ Credential	Rolls
			preparing DPR/RFP/ Bid process management of large ICT infrastructure projects	Govt assignments.	Centre projects	
5	**Data Center Design Expert**	BE/B.Tech	a) Overall experience of >5 years b) Relevant experience of >3 years in data Center design	Should have been involved in at least 2 Greenfield / Brownfield Data Centre/DR projects, preferably Tier II / III / IV aligned.	CDCP/CDCS/ CDCE/CTDC/ BICSI DCDC or equivalent	Consortium partner/ Lead bidder
6	**Subject Matter Expert (Electrical / Mechanical / Fire & Safety / ELV / Access Control)**	BE/B.Tech in Electrical / Mechanical / Electronics & Communication or equivalent	a) Overall experience of >5 years b) Relevant experience of >3 years in design, implementation, operation or consultancy of Data Centre Facility Infrastructure	Experience in at least 1 Data Centre/DR center, Mission Critical Facility, Industrial Infrastructure, Command & Control Centre or similar project involving Electrical Systems, HVAC, Fire Suppression, ELV, BMS, Access Control or Physical Security Systems	CDCP/CDCS/ CDCE/CTDC/ BICSI DCDC or equivalent or Certification in relevant domain such as NFPA, Fire Safety, HVAC, Energy Management, BMS, Electrical Systems, ELV, Access Control or any equivalent certification (Desirable) as per SME specialization.	Consortium partner/ Lead bidder

Note : SME shall be deployed based on requirement during contract eg.,. in some months there may be requirement of 2-3 SMEs and after Go-Live the requirement will be less.

- The Lead bidder and Consortium Partner shall submit 2 number of SME CVs of one Subject Matter Expert (SME) each in Civil, Mechanical and/or Electrical disciplines. Actual deployment of SME to be done on need basis. Quantity for SME in Form-T3 represents composite category covering multiple disciplines on need basis.

- Marks for the SME category will be awarded jointly for CVs proposed.

- The Lead bidder and Consortium Partner to submit a self certificate signed by an authorized signatory of the proposal / HR head stating that "The Lead Bidder / Consortium Partner _____(Name of the bidder) has at least 3 SMEs in the fields of Mechanical / Fire & Safety / ELV / Access Control / Civil / Electrical disciplines as on bid submission date and shall be deployed on need basis"

9.4 Key Personnel Evaluation Criteria

#	Resource	Total Marks	Educational Qualification	Minimum Experience - Overall, relevant experience weightage 50:50	Project Experience	Desirable Certification
1	Project Manager (Technical Project Manager)	25	5	8	9	3
2	Server & Cloud IT Expert	15	3	4	6	2
3	Network & Security Expert	15	3	4	6	2
4	DPR/RFP Expert	15	3	4	6	2
5	Data Center Design Expert	20	3	7	8	2
6	Subject Matter Expert	10	2	3	4	1

9.5 Final Evaluation of Bid

9.5.1 Evaluation Methodology

a. The evaluation of Bids shall be carried out under the Quality and Cost Based Selection (QCBS) method, wherein the Technical Proposal and Financial Proposal shall be evaluated in a combined manner. The weightage assigned shall be as follows:
   i. Technical Evaluation (T) :**70%**
   ii. Financial Evaluation (F) :**30%**

9.5.2 Technical Evaluation

a. Technical Proposals shall be evaluated as per criteria specified in the RFP.
b. Bidders securing **minimum 70% marks in Technical Evaluation (T ≥ 70)** shall be declared **Technically Qualified**.

c. Financial Proposals of only Technically Qualified Bidders shall be opened.

9.5.3 Financial Evaluation

a. Financial evaluation shall be carried out for Technically Qualified Bidders only.
b. For evaluation purpose:
    i. **F** = Financial Quote of the Bidder
    ii. **F(low)** = Lowest Financial Quote among Technically Qualified Bidders
c. The lowest quoted Bidder (Flow) shall be assigned highest Financial Score.

9.5.4 Combined QCBS Score

The **Highest Combined Score (H1)** shall be calculated using the following formula:

A = (T / T(High) × WT + (Flow / F) × WF

Definitions

- **A** = Combined QCBS Score
- **T** = Technical Score of the Bidder
- **T(High)** = Highest Technical Score among all Bidders
- **F** = Financial Quote of the Bidder
- **F(low)** = Lowest Financial Quote among qualified Bidders
- **WT** = Technical Weightage (0.70)
- **WF** = Financial Weightage (0.30)

9.5.5 Tie-Breaker Criteria

In case of tie in Combined Score (A):

a. Higher Technical Score (T) shall be ranked higher.
b. In case of further tie, preference shall be given in order of:
    i. Similar work experience
    ii. Average Annual Turnover
    iii. Key Personnel strength and experience

9.5.6 Ranking and Award

a. Bidders shall be ranked based on Combined Score (A), highest being ranked as H1.
b. The Bidder securing highest score (A) shall be treated as the Most Advantageous Bidder.
c. For the purpose of evaluation and ranking, scores shall be considered up to two (2) decimal places.
d. The Employer may invite H1 Bidder for negotiations, if required.
e. The Contract shall be awarded to H1 Bidder subject to fulfilment of RFP conditions.

10 Liquidate Damages (LD) & Service Level Agreement (SLA)

10.1 Liquidate Damages

The Resources shall adhere to the timelines specified in the Delivery Schedule. In the event of delay in submission or completion of any milestone/deliverable attributable to the Resource, a penalty equivalent to 0.5% (Half Percent) of the total Contract Value per week or part thereof shall be deducted from the payments due to the Resources.

S. No.	Phase	Part	Milestone	Timeline	Applicable Penalty
1	**Phase I**	**Selection of TAA**	Issuance of Letter of Intent (LoI) / Notification of Award	T	Not Applicable
2	**Phase I**	**Selection of TAA**	Signing of Contract	T + 7 Days	Not Applicable
2	**Phase I**	**Selection of TAA**	Mobilization and Deployment of Resources	T + 14 Days	0.5% of Total Contract Value per week of delay
3	**Phase I – Advisory, Procurement Support & Implementation Oversight (18 Months)**	**Part A – Existing DC Monitoring and DR Centre Design**	Continuous Monitoring, Performance Assessment, Capacity Review and Technical Advisory Support for Existing State Data Centre (SDC) Infrastructure and Operations	From T + 14 Days to T + 18 Months	0.5% of Total Contract Value per week of delay
4			Submission of DR Centre Design and associated technical requirements	T + 21 Days	0.5% of Total Contract Value per week of delay
5			Completion of DR Centre Design and submission of design documents	T + 2 Months	0.5% of Total Contract Value per week of delay
6			As-Is Assessment of Existing Data Centre Infrastructure and Submission of Gap Analysis & Way Forward Report for Establishment of Disaster Recovery Centre	T + 3 Months	0.5% of Total Contract Value per week of delay
7		**Part B – DPR & MSP Procure**	Support in Preparation and Finalization of Detailed Project Report (DPR)	T + 4 Months	0. 5% of Total Contract Value per week of delay

S. No.	Phase	Part	Milestone	Timeline	Applicable Penalty
8		**ment Support**	Support in Preparation and Finalization of MSP Tender / RFP Documents	T + 5 Months	0. 5% of Total Contract Value per week of delay
9			Support in Onboarding of Master Service Provider	T + 8 Months	0.5% of Total Contract Value per week of delay
10		**Part C – MSP Implementation Oversight and DR Centre Deployment Support**	MSP Implementation Oversight and DR Centre Deployment including Delivery, Installation & Commissioning, Configuration, FAT and Go-Live of IT Infrastructure	From T + 8 Months to T + 18 Months	0.5% of Total Contract Value per week of delay
11	**Phase II – PMU Support for Operations & Maintenance (36 Months)**		PMU Support for Data Centre (DC) and Disaster Recovery (DR) Infrastructure Operations, Managed Services Oversight, SLA Monitoring, Performance Review and Contract Management Support	From T + 18 Months to T + 54 Months	0.5% of Total Contract Value per week of delay

10.2 Penalty Capping

The aggregate amount of Liquidated Damages (LD) and/or penalties levied under the Contract shall not exceed ten percent (10%) of the total Contract Value. No Liquidated Damages or penalties shall be applicable for delays, non-performance, or failure to achieve milestones to the extent such delays or failures are attributable to the Department/Client, any third-party agency engaged by the Department, force majeure events, or any other reasons beyond the reasonable control of the Resources

10.3 Service Level Agreement (SLA)

The Resources shall ensure continuous deployment and availability of the proposed key resources throughout the contract period. Resource availability shall be measured on a monthly basis based on attendance records approved by the Client.

SLA Parameter	Service Level Requirement	Measurement Frequency	Penalty
Project Manager (Technical Project Manager)	Minimum 95% Attendance	Monthly	For every 1% shortfall below 95%, deduction @ 0.1% of the monthly billing value of the concerned resource
Server & Cloud IT Expert	Minimum 95% Attendance	Monthly	For every 1% shortfall below 95%, deduction @ 0.1% of the monthly billing value of the concerned resource
Network & Security Expert	Minimum 95% Attendance	Monthly	For every 1% shortfall below 95%, deduction @ 0.1% of the monthly billing value of the concerned resource
DPR/RFP Expert	Minimum 95% Attendance	Monthly	For every 1% shortfall below 95%, deduction @ 0.1% of the monthly billing value of the concerned resource
Data Center Design Expert	Minimum 95% Attendance	Monthly	For every 1% shortfall below 95%, deduction @ 0.1% of the monthly billing value of the concerned resource
Subject Matter Expert	Minimum 95% Attendance	Monthly	For every 1% shortfall below 95%, deduction @ 0.1% of the monthly billing value of the concerned resource
Note: Attendance will be calculated on total days present against total working days in the month. The resources to be made available at site on any day of the month if the department / APTS requires the resource to be present.			

10.4 Acceptance Criteria

All deliverables submitted by the Technical Advisory Agency (TAA) at each milestone shall be subject to review and formal acceptance by the ITE&C Department/APTS based on predefined quality, completeness, and compliance parameters as specified in the Scope of Work. Acceptance shall be based on verification of conformity with technical requirements, adherence to timelines, accuracy of analysis, and alignment with applicable standards, guidelines, and project objectives. In case of any deficiencies or non-conformities, the deliverables shall be returned to the TAA for necessary revisions, and the TAA shall address the observations within a mutually agreed timeline without any additional cost. Payments linked to milestones shall be

released only upon issuance of formal acceptance by the competent authority of ITE&C Department

10.5 Legal terms and conditions

a. **Single point of responsibility — Lead Bidder solely liable to the APTS/ITE&C department (called as "Authority"):** Notwithstanding the participation of other consortium member(s) in the assignment, the Lead Bidder shall be solely, wholly, and unconditionally responsible and accountable to the Authority for the due and satisfactory performance of the entire scope of work, including the portion(s) performed by consortium member. All claims of the Authority — whether for deficiency, delay, liquidated damages, recovery of costs, indemnity, or any other cause arising under or in connection with the contract — shall be raised against, notified to, and settled/recovered from the Lead Bidder alone. The Authority shall not be required to proceed against, notify, or implead any other consortium member, and shall have no independent cause of action against them. Apportionment of liability among the Lead Bidder and other consortium member(s) inter se is a matter governed solely by the Consortium Agreement and is of no concern to the Authority.

b. **Full-tenure commitment — no exit till contract expiry:** The Lead Bidder and each consortium member shall remain continuously engaged with the assignment, in the same role, scope, and shareholding/revenue-share as disclosed in the bid, as per terms of the contract, including any extension(s) and any warranty, transition, or post-implementation support period specified in the RFP. Neither the Lead Bidder nor any consortium member shall withdraw, resign, exit, dilute its role, or reduce its shareholding/stake in the consortium before contract expiry, without the Authority's prior written approval. Each member shall submit, along with the bid, an irrevocable undertaking to remain engaged with the project till expiry of the contract in the format prescribed by the Authority.

c. **Lead Bidder not to exit or be substituted:** Given its position as sole point of responsibility and accountability under Clause 1, the Lead Bidder shall not, under any circumstances, exit the consortium, transfer its role to another consortium member or a third party, or be substituted, during the term of the contract. Any change in the Lead Bidder's ownership, control, or management materially affecting its capacity to perform shall be intimated to the Authority within [15] days of such change.

d. **Consequences of premature exit/withdrawal:** Any unauthorized withdrawal, exit, or discontinuation by the Lead Bidder or any consortium member before contract expiry shall be treated as a material breach of contract, entitling the Authority, without prejudice to other remedies available in law, to: (a) forfeit the Performance Security in full; (b) recover from the Lead Bidder any additional cost and losses incurred in engaging a replacement or otherwise completing the assignment; (c) initiate blacklisting/debarment proceedings against the exiting entity, and, where the Lead Bidder is responsible for or complicit in the exit, against the Lead Bidder, as per the applicable government debarment policy; and (d) terminate the contract for default.

e. **Continuity on member default/exit:** If consortium member (other than the Lead Bidder) is unable to continue in the project, whether due to insolvency, winding-up, debarment, or an Authority-approved exit, the Lead Bidder shall, at no additional cost or time extension, either absorb that member's scope of work itself, arrange for the remaining member(s) to complete it, or propose a replacement entity, so that the

assignment continues without interruption or degradation of service. The Lead Bidder's liability to the Authority remains unaffected and undiminished throughout.

f. **Replacement of a consortium member:** Where the Authority permits the exit of a consortium member (other than the Lead Bidder) in exceptional circumstances, such exit shall be conditional on the Lead Bidder proposing a replacement entity of equal or better technical and financial credentials, pre-approved in writing by the Authority, at no change in contract price and no extension of timelines. Until such replacement is approved and in place, the Lead Bidder shall remain fully responsible for the exiting members scope of work.

g. **Indemnity:** The Lead Bidder shall indemnify and hold the Authority harmless against any claim or loss arising from the assignment, including losses arising from inter-member disputes over fee-sharing, IP, scope, or an unauthorized exit; the Authority shall not be party to, or liable for, any dispute between consortium members, such disputes being resolved entirely between the members under the Consortium Agreement without affecting performance of the contract or the timelines under it.

h. **Conflict of interest with implementation stage:** Neither the consortium, its members, affiliates, nor key personnel on this advisory assignment shall be eligible to bid for or hold any financial/beneficial interest in a bidder for, the subsequent System Integrator/OEM/supply contract(s) for the DR site emerging from this assignment's recommendations, for a period of 1 year from completion of the initial agreement period. A signed declaration shall be submitted by each member.

i. **Compliance with law:** The consortium shall comply with the Information Technology Act, 2000 and rules thereunder, CERT-In directions/empanelment requirements (where scope includes security assessment/audit), applicable data-protection/localization requirements for government data, and other State-specific regulations.

j. **Governing law & dispute resolution:** The contract shall be governed by the laws of India. Disputes shall first go to good faith negotiation between the Lead Bidder and the Authority for 30days; failing resolution, to arbitration under the Arbitration and Conciliation Act, 1996, seated at Amaravati/Vijayawada, Andhra Pradesh, in English, with the Lead Bidder as the sole respondent/claimant on behalf of the consortium, consistent with Clause B.1. Courts at Amaravati/Vijayawada, Andhra Pradesh shall have exclusive jurisdiction for matters outside arbitration. Cost of arbitration will be in the equivalent ratio of authority and consortium.

10.6 Non-solicitation:

a. Neither the consortium nor its members shall, during the contract term and for 6 months thereafter, solicit or engage the Authority's officials or deputed staff without prior written consent Confidentiality, Data Security & IP

b. **Confidentiality/NDA:** Each member and its personnel deployed on the assignment shall execute a Non-Disclosure Agreement with the Authority before commencement, given the sensitivity of the State's IT infrastructure, citizen-data systems, and security posture. Confidentiality obligations shall survive termination/completion for a minimum of 2 years from the contract completion date.

c. **Data handling and clearance:** Where the assignment involves access to production systems, citizen data, or security architecture, all deployed personnel of every member

shall undergo background verification/security clearance as the Authority prescribes, and shall not store, transmit, or process government data outside India without prior written approval.

d. **Intellectual property:** All reports, , designs, RFP documents, and other deliverables of the assignment shall be the exclusive property of the APTS; the consortium and its members shall have no right to use, publish, or commercially reference such deliverables without prior written consent, other than standard credential/experience listing.

10.7 Payment terms and Schedule

The payment for the RFP assignment shall be made to the lead bidder on a Quarterly Basis during the contract period within 30 days from the invoice submission date. The bid should be submitted by the Lead Bidder. All the payments will be released / applicable penalty will be levied on the Lead Bidder. Payment shall be released subject to satisfactory performance, submission of deliverables, and certification/acceptance by APTS/ITE&C department.

In the case of consortium, the bidder is the Lead Bidder, the entire responsibility will be with the Lead Bidder.

Payment Milestone
Equal Quarterly Payment (Payable at the end of each quarter against approved deliverables and invoice)

10.8 General Terms & Conditions

1. **Quarterly Invoicing**
   - The lead bidder shall submit invoices on a quarterly basis along with supporting documents and progress reports.
   - Payment shall be processed only after verification and approval of deliverables by the Client.
2. **Acceptance of Deliverables**
   - All reports, designs, DPRs, RFP documents, technical specifications, presentations, and related outputs shall be subject to review and acceptance by the Client.
   - The Client may seek clarifications, modifications, or additional information before acceptance.
3. **Payment Timeline**
   - Payments shall be released within the applicable payment cycle of the Client after receipt of a complete and correct invoice and acceptance of deliverables.
4. **Taxes and Duties**
   - All payments shall be subject to applicable statutory deductions, including TDS and other taxes as per prevailing laws.
   - GST, if applicable, shall be paid separately as per actuals and applicable regulations.
5. **Performance Obligation**
   - Release of quarterly payments shall be linked to satisfactory performance and achievement of agreed project objectives and milestones.
6. **No Advance Payment**
   - No advance payment shall be made unless specifically approved by the Client and stated in the contract.
7. **Resource Deployment**
   - The Lead bidder/Consortium Partner shall ensure continuity of the proposed key resources throughout the project period.
   - Replacement of key personnel shall require prior written approval of the APTS/ITE&C department and shall be with equivalent or better-qualified personnel.

- Resource replacement should be done within 21 days from date of approval obtained from ITE&C department/APTS on resource change with suitable profile and One replacement is allowed during the entire contract period for each category of resources.
- More than 1 replacement: 5% of annual resource cost will be deducted as penalty for every resource replacement In the event of any replacement requires, the consortium members to obtain prior approval from APTS/ITE&C department.

8. **Confidentiality**
   - The Lead bidder/Consortium Partner shall maintain strict confidentiality of all information, documents, data, and records received during the project.
   - No information shall be shared with third parties without prior written approval of the Client.
9. **Intellectual Property Rights**
   - All documents, reports, designs, specifications, DPRs, RFPs, recommendations, and other deliverables prepared under the contract shall become the sole property of the Client.
10. **Compliance with Standards**
    - The Lead bidder/Consortium Partner shall comply with all applicable industry standards, Government guidelines, Data Centre standards, statutory requirements, and best practices.
11. **Penalty for Delay**
    - Any delay attributable to the Lead bidder/Consortium Partner may attract penalties as prescribed in the contract and/or may result in proportionate withholding of payments.
12. **Termination**
    - The Client reserves the right to terminate the contract by giving written notice in case of unsatisfactory performance, breach of contractual obligations, or any material default by the Lead bidder/Consortium Partner.
13. **Withholding of Payments**
    - The Client may withhold part or full payment if deliverables are incomplete, deficient, or not in accordance with the agreed scope of work.
14. **Audit and Inspection**
    - The Client or its authorized representatives may audit, inspect, and verify project records, reports, and related documents during the contract period.
15. **Dispute Resolution**
    - Any dispute arising out of the contract shall first be resolved amicably through mutual consultation. Failing such resolution, the matter shall be referred to arbitration under the applicable laws of India.
16. **Force Majeure**
    - Neither party shall be liable for failure or delay in performance due to circumstances beyond its reasonable control, including natural disasters, war, government restrictions, or other force majeure events.
17. **Final Payment**
    - The final quarterly payment shall be released only after successful completion of all contractual obligations and acceptance of all deliverables by the Client.
18. **Right to Recover**
    - The Client reserves the right to recover any excess payment, penalties, liquidated damages, or other dues from any payment due to the Lead bidder/Consortium Partner.

11 Financial Format

11.1 General Terms

Financial quotes must cover all resources, infrastructure, software, overheads, and out-of-pocket expenses necessary for executing the scope of work. No ad-hoc requests for additional payments will be entertained.

a. All amounts shall be made in Indian Rupees Only.
b. Bidder should provide all price as per the prescribed format under this Annexure.
c. Evaluation of bids shall be carried out on the base price (excluding all Taxes, Duties, and Levies). However, applicable taxes shall be paid separately at actuals, as per the prevailing rates at the time of invoicing.
d. Any change in applicable tax rates (increase/decrease) during the project period shall be borne/reimbursed at actual, subject to submission of valid documentary evidence.
e. All quoted base rates (excluding taxes) shall remain firm and fixed throughout the entire lifecycle of the project. The selected Bidder shall also provide additional requirements, if any, at the same base rates.
f. All payments to be paid to the selected Bidder shall be inclusive of all statutory levies, duties, taxes, and other charges whenever levied/applicable.
g. The Department/APTS shall not consider taxes for comparison of bids, but shall ensure payment of actual applicable taxes at the time of billing.
h. All invoices raised by the Bidder must clearly indicate Base value, Applicable taxes (GST, etc.), Total invoice value.
i. Bidder must ensure compliance of the objectives and functional requirements of the project. In order to ensure this, bidder must provide required items (if any) at no additional cost.

12 Form and Annexures

12.1 Model Contract form

Tender ref.no.

THIS AGREEMENT made the ..... day of ..... (Year) (hereinafter "the USER/ APTS/ ITE&C Department") of one part and ..... (Name of Vendor) of ..... (City and Country of Vendor) (hereinafter "the Vendor") of the other part:

WHEREAS the USER is desirous that certain solution, service and materials, as described in the bid document and briefly outlined below, should be provided by the Vendor.

Date of tender call:
Title of the project:
Brief outline of the work:

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

In this agreement words and expression shall have the same meanings as are respectively assigned to them in the bid document referred to.

The following documents shall be deemed to form and be read and construed as part of this Agreement, viz..

a. Notification of award.
b. clarification on bid document issued if any,
c. Bid submitted by successful bidder
d. pre - bid conference minutes if any,
e. bid documents

In consideration of the payments to be made by the USER to the Vendor as hereinafter mentioned, the Vendor hereby covenants with the USER to provide the goods and services (solution, service and materials) and to remedy defects therein in conformity, in all respects, with the provisions of the contract.

The USER hereby covenants to pay the Vendor in consideration of the provision of the goods and services and the remedying of defects therein, the contract price or such other sum as may become payable under the provisions of the contract at the times and in the manner prescribed by the contract.

Brief particulars of the goods and services which shall be supplied / provided by the Vendor are given in Annexure.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with their respective laws the day and year above written.

Signed, and delivered by for the Vendor. Vendor’s common seal:	Signed, and delivered by For
Place Date: In the presence of:.....	Place: Date:

APTS. Tender Ref. No.

12.2 Bid Security (EMD) form

(To be issued by a bank scheduled in India as having at least one branch in Vijayawada)
Whereas..... (herein after called "the Bidder") has submitted its bid dated .....(Date). For the execution of ..... KNOW ALL MEN by these presents that WE ..... of ..... having our registered office at..... (hereinafter called the "Bank") are bound unto the Andhra Pradesh Technology Service Ltd. (hereinafter called "The APTS") in the sum of ..... for which payment well and truly to be made to the said APTS itself, its successors and assignees by these presents.

The conditions of this obligation are:

1. If the bidder withdraws its bid during the period of bid validity or
2. If the bidder, having been notified of the acceptance of its bid by
3. The APTS during the period of bid validity:
   i. fails or refuses to execute the contract form if required; or
   ii. fails or refuses to furnish the performance security, in accordance with the bid requirement;

We undertake to pay the APTS up to the above amount upon receipt of its first written demand, without the APTS having to substantiate its demand, provided that in its demand the APTS will note that the amount claimed by it is due to it, owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to and including 45 days after the period of the bid validity, and any demand in respect thereof should reach the Bank not later than the above date.

Place: Signature of the Bank and seal.
Date:

12.3 Performance Security form

(To be issued by a bank scheduled in India and having at least one branch in Vijayawada) To: ..... (Name of USER) WHEREAS ..... (Name of Vendor) hereinafter called "the Vendor" has undertaken, in pursuance of Contract No..... dated, ... (Date), to supply ..... called "the Contract". AND WHEREAS it has been stipulated by you in the said Contract that the Vendor shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with the Supplier's performance obligations in accordance with the Contract.

WHEREAS we have agreed to give the Vendor a Guarantee:

THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Vendor, up to a total of Rs. .....and we undertake to pay you, upon your first written demand declaring the Vendor to be in default under the Contract and without cavil or argument, any sum or sums within the limit of Rs..... (Amount of Guarantee) as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein. This guarantee is valid until the ..... day of ..... (Date)

Place: Signature of guarantors and seal.

Date:

12.4 Pre-Qualification Bids

12.4.1 Form P-1: (Letter of Proposal)

(Separate form for Lead Bidder & Consortium Bidder)
Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

(On Bidder/Consortium letter head)

Date

Name of the Service Provider (Bidder):
Name of the Project:

To,
Andhra Pradesh Technology Services Limited,
3rd Floor, R&B Building, Opp. Indira Gandhi Municipal Stadium,
MG Road, Labbipet, Vijayawada-520010,

Dear Sir,

Sub: Selection of TAA Agency for Establishment of Disaster Recovery (DR) Centre and PMU Services for APSDC GoAP – Reg

Having examined the bidding documents and amendments there on, we the undersigned , offer to provide services/execute the works in conformity with the terms and conditions of the bidding document and amendments there on, for the following project in response to your tender call dated.....
Project title:

We undertake to provide services/execute the above project or its part assigned to us in conformity with the said bidding documents for an estimated sum proposed in the Financial Bid in accordance with the schedule of prices attached herewith and coverage options made by APTS or its user organization.

If our bid is accepted, we undertake to:

1. Provide services/ execute the work according to the time schedule specified in the bid document,
2. Obtain the performance guarantee of a bank in accordance with bid requirements for the due performance of the contract, and
3. Agree to abide by the bid conditions, including pre-bid meeting minutes if any, which remain binding upon us during the entire bid validity period and bid may be accepted any time before the expiration of that period.

We understand that you are not bound to accept the lowest or any bid you may receive, nor to give any reason for the rejection of any bid and that you will not defray any expenses incurred by us in bidding.

Yours faithfully

(Signature, name and designation
of the authorized signature)

(Name and seal of the Firm)

12.4.2 Form P-2: (Bidder Information)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

S.No	Description	Details to be filled by lead Bidder
1.	Name of the Organization	
2.	Nature of the Organization Government/ Public/ Private/ Partnership/ Proprietorship/ LLP	
3.	Year of Establishment (Enclose any of the following for proof of establishment) ● Certificate of Incorporation ● Audited balance sheets ● Registered Partnership deed if any	
4.	Regd. Office Postal Address with Phone & Fax Number	
5.	Office Postal Address with Phone & Fax Number in Andhra Pradesh	
6.	Contact person with Phone, Mobile Number & e-mail address	
7.	TIN No./ CST Regn No/ Service Tax/ GST Regn No.	
8.	ISO 27001:2022, ISO 20000:2018, ISO 9001:2015 Certifications details if any	
9.	Proof of Bid Purchase	
10.	Details of EMD furnished	
11.	Declaration as Per the GO Ms.12, Dated 08.06.2015	Yes/ No
12.	Details of Certificates enclosed	
13.	Power of Attorney enclosed	Yes/ No
14.	Append applicable credentials as per RFP	

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

12.4.3 Form P-2a: (Consortium Partner Information)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

S.No	Description	Details to be filled by consortium partner
1.	Name of the Organization	
2.	Nature of the Organization Government/ Public/ Private/ Partnership/ Proprietorship/ LLP	
3.	Year of Establishment (Enclose any of the following for proof of establishment) ● Certificate of Incorporation ● Audited balance sheets ● Registered Partnership deed if any	
4.	Regd. Office Postal Address with Phone & Fax Number	
5.	Office Postal Address with Phone & Fax Number in Andhra Pradesh	
6.	Contact person with Phone, Mobile Number & e-mail address	
7.	TIN No./ CST Regn No/ Service Tax/ GST Regn No.	
8.	ISO 27001:2022, ISO 20000:2018, ISO 9001:2015 Certifications details if any	
9.	Declaration as Per the GO Ms.12, Dated 08.06.2015	Yes/ No
10.	Details of Certificates enclosed	
11.	Power of Attorney enclosed	Yes/ No
12.	Append applicable credentials as per RFP	

Note: In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A)

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

12.4.4 Form P-3: (Turnover details of Lead Bidder)

Tender ref.no.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

Turn over details of Company

Financial Information			
Item/ Year	**FY 2022-23**	**FY 2023-24**	**FY 2024-25**
Revenue (in INR Crore)			
Profit Before Tax (in INR Crore)			
Profit After Tax (in INR Crore)			
Net Worth			
Other Relevant Information			

CA certificate to be attached for the above claim.

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

12.4.5 Form P-3a: (Turnover details of Consortium Bidder)

Tender ref.no.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

Turn over details of Company

Financial Information			
Item/ Year	**FY 2022-23**	**FY 2023-24**	**FY 2024-25**
Revenue (in INR Crore)			
Profit Before Tax (in INR Crore)			
Profit After Tax (in INR Crore)			
Net Worth			
Other Relevant Information			

CA certificate to be attached for the above claim.

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

Note: In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A)

12.4.6 Form P-4: (Details of Past Experience of Similar Projects)

(Separate form for Lead Bidder & Consortium Bidder)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

Sno	Client Name	Project Name	Nature of Assignment	Project Details (as per eligibility Criteria)	Contact Details

Note:

- Work order and Proof of Go-live/ Project completion certificates from client shall be provided. Non-compliance to this shall lead to non-evaluation of the projects.
- In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A).

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

12.4.7 Form P-5: Declaration Regarding non-Blacklisting/ Clean Track Record for Lead Bidder

(to be submitted along with Pre-qualification bid)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

To,
The Managing Director
Andhra Pradesh Technology Services Limited
R&B Building, 3rd Floor,
MG Road, Labbipet, Opp-Indira Gandhi Municipal Stadium,
Vijayawada-520010, Andhra Pradesh, India

Sir,

I have carefully gone through the Terms & Conditions contained in the tender document [No._____]. I hereby declare that my company/Consortium Partners has not been debarred/ blacklisted as on Bid calling date by any Central or State Government / Quasi Government Departments or Organizations in India for non-satisfactory past performance, corrupt, fraudulent or any other unethical business practices.

Also, declare that, we do not have any legal disputes with ITE&C or associated depts. including APTS as on Bid calling date. I further certify that I am competent officer in my company to make this declaration.

Yours faithfully,

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

12.4.8 Form P-5a: Declaration Regarding non-Blacklisting/ Clean Track Record for Consortium Bidder

(to be submitted along with Pre-qualification bid)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

To,
The Managing Director
Andhra Pradesh Technology Services Limited
R&B Building, 3rd Floor,
MG Road, Labbipet, Opp-Indira Gandhi Municipal Stadium,
Vijayawada-520010, Andhra Pradesh, India

Sir,

I have carefully gone through the Terms & Conditions contained in the tender document [No._____]. I hereby declare that my company/Consortium Partners has not been debarred/ blacklisted as on Bid calling date by any Central or State Government / Quasi Government Departments or Organizations in India for non-satisfactory past performance, corrupt, fraudulent or any other unethical business practices.

Also, declare that, we do not have any legal disputes with ITE&C or associated depts. including APTS as on Bid calling date. I further certify that I am competent officer in my company to make this declaration.

Yours faithfully,

(Signature of the Bidder)
Name
Designation
Seal
Date:
Business Address:

Note: In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A)

12.4.9 Form P-6: Bidders Authorization/ Power of Attorney

Format for Bidders Authorization/ Power of Attorney or bidder may use their standard form of Power of attorney

(Separate form for Lead Bidder & Consortium Bidder)

(Company Letterhead)

Date:

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026.

To
The Managing Director
APTS
3rd Floor, R&B Building,
MG Road, Labbipet,
Vijayawada

Dear Sir,

Ms. /Mr. _____ is hereby authorized to sign relevant documents on behalf of the bidder for the RFP for "_____". She/he is also authorized to attend meetings & submit technical & financial information as may be required by you in the course of processing above said tender.

Thanking you,

Signature of Authorized Signatory:

Name of Authorized Signatory:
Seal of the Organization:
Date:

Note: In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A)

12.4.10 Form P-7: Undertaking form for AP GST Registration (Lead Bidder)

Date:

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

To
The Managing Director
APTS
3rd Floor, R&B Building,
MG Road, Labbipet,
Vijayawada

Dear Sir,

This is to notify that, we have the office at _____ having the AP GST _____.

This is to notify that the registration for AP GST will be submitted in 3 months from the date of selection of M/s _*Company name*_____ as Service Provider for _____".

We, understand that any deviation on the submission of AP GST certificate copy will lead to termination from the selection process.

Thanking you,

Signature of Authorized Signatory:

Name of Authorized Signatory:
Seal of the Organization:
Date:

12.4.11 Form P-8: Format for Self-Declaration on GO.Ms.12

(Company Letterhead of Lead Bidder)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

To,

[Date]

The Managing Director,
Andhra Pradesh Technology Services Ltd.,
3rd Floor, R&B Building,
MG Road, Labbipet,
Vijayawada – 520 010 - Andhra Pradesh, India

Sir,

In response to the RFP No._____
dated_____ for quoting against the RFP in the capacity of _____
of <<Bidderr>> , I / We hereby declare that

Declaration as per GO.Ms.12, Dated 08.06.2015:

Clause 6:

i. Bidders can submit their bids with self-declarations in respect of the pre-qualification criteria prescribed in the RFP
ii. The procuring agency shall evaluate the bids based on the self-declaration and select the successful bidder
iii. The successful bidder should submit the documents to prove their pre-qualification as specified in the RFP, within 5 working days from the date of declaration of successful bidder
iv. APTS will receive support documentations, verify the compliance with the requirements of the RFP and if they are in order, issue the award notification
v. Failure to submit all support documents by the successful bidder within specified time or non-compliance with the self-declaration or non-fulfillment of the pre-qualification criteria specified in the RFP, upon their verification, shall entail forfeiting the EMD and Blacklisting of such bidder for a period of two years. In such cases, the procuring agency may proceed further with the next-ranked bid.

Yours faithfully,

Authorized Signatory_____
Name_____
Designation_____
Company name_____

12.4.12 Form P-9: Technically Qualified Personnel

(Separate form for Lead Bidder & Consortium Bidder)

Date:

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

To
The Managing Director
APTS
3rd Floor, R&B Building,
MG Road, Labbipet,
Vijayawada

Dear Sir,
Ref:

This is to certify that M/s ___(Lead Bidder/Bidder) having its registered office at ____office address___, India and M/s _____(Consortium Partner) having its registered office at ____office address___, India have more than 50 fulltime technically qualified in any of the areas of IT Consulting, IT Infrastructure, IT Security, IT Procurement, IT and Datacenter Audit, e-Governance, Program/ Project Management, SLA Audit & Monitoring for IT related projects having relevant degree and shall possess prior experience in providing the above Advisory / Consultancy Services in India as on bid calling date. Details are:

SNo	Name	Lead Bidder/ Consortium Partner	Designation	Educational Qualifications	Experience	Remarks

Note: In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A)

Thanking you,

Signature of Authorized Signatory:

Name of Authorized Signatory:
Seal of the Organization:

12.4.13 Form P-9a: Technically Qualified Personnel with Certification's

(Separate form for Lead Bidder & Consortium Bidder)

Date:
Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

To
The Managing Director
APTS
3rd Floor, R&B Building,
MG Road, Labbipet,
Vijayawada

Dear Sir,
Ref:

This is to certify that M/s ___(Lead Bidder/Bidder) having its registered office at ____office address___, India or M/s _____(Consortium bidder) having its registered office at ____office address___, India have a team with any professional certifications in Project Management, Data Centre Design and Critical Infrastructure, IT and Cloud Infrastructure, Server/Operating Systems, Networking, Cybersecurity/Information Security, IT Service Management, Enterprise Architecture, Procurement and Financial Management with at least 10 resources overall in India as on bid calling date. Details are:

SNo	Name	Lead Bidder/ Consortium Partner	Designation	Educational Qualifications	Certifications	Remarks

Note: In case of Lead bidder participating solely, the consortium bidder details maybe left blank and is not applicable (N/A)

Thanking you,

Signature of Authorized Signatory:
Name of Authorized Signatory:
Seal of the Organization:

12.4.14 Form P-10: Conflict of Interest

(Separate form for Lead Bidder & Consortium Bidder)

Name of the Bidder:
Name of the Project:

Note: In case of Lead bidder participating solely, the consortium partner details maybe left blank and is not applicable (N/A)

(Bidders own format on the company letter head)

12.4.15 Form P-11: Agreement between the Lead Bidder and Consortium Partner

(Rs.100/- Non-Judicial Stamp Paper)

Agreement between the Lead Bidder and Consortium Bidder shall be submitted duly indicating the roles and responsibilities of each bidder

Note: Incase of Lead bidder participating solely, the consortium partner details/ Agreement details are not applicable (N/A)

12.5 Technical Bid forms

12.5.1 Form T-1: (Compliance/ Agreed/ Enclosed/ Deviation Statement)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026.

The following are the particulars of compliance/deviations from the requirements of the tender specifications. (For every item appropriate remarks should be made like Complied, No deviation, Agreed, Enclosed)

#	Bid document reference	Remarks
1.	EMD details	
2.	Letter of Proposal (Form P-1)	
3.	Bidder Information (Form P-2)	
4.	Consortium Bidder Information (Form P-2a)	
5.	Turnover details of Company (Lead Bidder) (Form P-3)	
6.	Turnover details of Company (Consortium Bidder) (Form P-3a)	
7.	Details of Past Experience of Similar Projects (Form P-4)	
8.	Non-Blacklisting/ Clean Track Record (Lead Bidder (Form P-5)	
9.	Non-Blacklisting/ Clean Track Record (Consortium Bidder (Form P-5a)	
10.	Bidders Authorization/ Power of Attorney (Form P-6)	
11.	Undertaking form for AP GST Registration (Form P-7)	
12.	Format for Self-Declaration on GO.Ms.12 (Form P-8)	
13.	Technically Qualified Personnel (Form P-9)	
14.	Technically Qualified Personnel with Certification's (Form P-9a)	
15.	Conflict of Interest (Form P-10)	
16.	Agreement between Lead Bidder and Consortium Bidder (form P-11)	
17.	Compliance/ Agreed/ Enclosed/ Deviation Statement (Form T-1)	
18.	Manpower Proposed (Form T-2)	
19.	Unpriced Bill of Material (Form T-3)	
20.	Financial bid format: Form F-1 (Manpower Charges)	
21.	Pre-qualification criterion	
22.	Technical specifications	
23.	General instruction to bidders	

The specifications and conditions furnished in the bidding document shall prevail over those of any other document forming a part of our bid, except only to the extent of deviations furnished in this statement.

Place: Bidder's signature

Date : Bidder's seal

12.5.2 Form T-2: (Manpower Proposed)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

Particulars of personnel proposed

S.No.	Employee Name	Whether person is internal	Qualification	Designation	Total Experience	Certificates if any	Through Lead Bidder/ Consortium Bidder
1							
2							
3							
4							
5							
6							

Note:

- Enclose C.V. in support of above claim. The CVs should be provided in the format as given in Annexure-I.
- The column “Whether person is internal (Yes/No)” shall indicate whether the proposed resource is an in-house employee of the bidder or an external resource engaged by the bidder. The bidder may propose external resources, subject to their meeting the prescribed qualification and experience requirements and being available for deployment as per the RFP

Signature of the Bidder with seal

12.5.3 Form T-3: (Unpriced Bill of Material)

(by Lead Bidder)

Tender Ref No.ITC51-20021/5/2026-INFR-APTS, dated. 21.10.2026

S.No	Item	Qty (nos)	Quoted (Yes/ No) (Do not mention prices)	Remarks
1	Project Manager (Technical Project Manager)	1		
2	Server & Cloud IT Expert	1		
3	Network & Security Expert	1		
4	DPR/RFP Expert	1		
5	Data Centre Design Expert	1		
6	Subject Matter Expert (Electrical / Mechanical / Fire & Safety / ELV)	1		

Signature of the Bidder with seal

12.6 Form F-1: Financial Bid Format

(by Lead Bidder)

Tender Ref. No.: ITC51-20021/5/2026-INFR-APTS, dated 21.10.2026

#.	Resource Category	Qty (A)	Monthly Unit Rate (B)	Duration of deployment Months (C)	Total man months D= AxC	Total man months cost E = D xB
1	Project Manager (Technical Project Manager)	1		54	54	
2	Server & Cloud IT Expert	1		54	54	
3	Network & Security Expert	1		54	54	
4	DPR/RFP Expert	1		6	6	
5	Data Center Design Expert	1		30	30	
6	Subject Matter Expert (Electrical / Mechanical / Fire & Safety / ELV)	1		24	24	
7	**Total Professional Fees (Inclusive of all costs, excluding applicable taxes, if any) – F**					
8	**Taxes and duties –G**					
9	**Grand total quoted price: H = (F+G)**					
Grand Total Quoted Price (in Words)						

1. The quoted rates shall remain firm and fixed for the entire contract period of **54 months**.
2. The quoted rates shall include all costs associated with deployment of the resources, including salary, benefits, overheads, administrative expenses, statutory compliances, travel (if any), and profit.
3. The Bidder shall enter the Grand Total Price (SNo.9) on the APeProcurement portal.
4. No escalation in rates shall be permitted during the currency of the contract. If Any tax change provisions applicable to GST shall be incorporated and paid at actuals.
5. In case of any discrepancy between the amount quoted in figures and in words, the amount quoted in words shall prevail. The Grand Total Quoted Price shall be considered for financial evaluation.
6. The bidder shall upload the above Form-F1 breakup sheet onto the APeProcurement portal at commercial stage.

12.7 Financial Bid Letter

Tender Ref. No.: ITC51-20021/5/2026-INFR-APTS, dated 21.10.2026

(On Lead Bidder's Letter Head)

Date: _____

Name of the Service Provider (Bidder): _____

Name of the Project:

To,
Andhra Pradesh Technology Services Limited (APTS)
3rd Floor, R&B Building, Opp. Indira Gandhi Municipal Stadium,
M.G. Road, Labbipet,
Vijayawada – 520010

Subject: Submission of Financial Proposal

Dear Sir,

We, the undersigned, having examined the Request for Proposal (RFP), all associated documents, addenda, clarifications, and amendments thereto, hereby submit our Financial Proposal for the above-mentioned assignment.

We confirm that our Financial Proposal has been prepared in accordance with the terms and conditions specified in the RFP and covers all costs necessary for successful execution of the assignment, including deployment of the proposed key resources, professional fees, administrative expenses, overheads, and all other obligations under the Contract.

We hereby declare that:

1. The Financial Proposal shall remain valid for the period specified in the RFP.
2. We have carefully examined and understood all conditions of the RFP and agree to abide by the same.
3. The quoted prices are firm and fixed for the entire contract period of **54 months** and are not subject to any escalation.
4. We acknowledge that the Client reserves the right to accept or reject any proposal, wholly or partly, without assigning any reason thereof.
5. We understand that the Financial Proposal shall be considered along with the Technical Proposal in accordance with the evaluation methodology specified in the RFP.
6. We certify that the information furnished in this proposal is true, complete, and correct to the best of our knowledge and belief.

7. We agree to execute the assignment and provide the required services in accordance with the scope of work, service levels, timelines, and contractual obligations defined in the RFP.

We hereby undertake that, in case our proposal is accepted, we shall enter into a formal agreement with APTS and perform the services in accordance with the terms and conditions of the Contract.

We look forward to the opportunity of working with Andhra Pradesh Technology Services Limited (APTS).

Yours faithfully,

Authorized Signatory
(Signature)

Name: _____

Designation: _____

For and on behalf of: _____

Company Seal & Stamp

12.8 Annexure-I – CV Format

1. **Proposed Position** [only one candidate shall be nominated for each position]:
2. **Name of Firm** [Insert name of firm proposing the staff]:
3. **Name of Staff** [Insert full name]:
4. **Date of Birth:**
5. **Nationality:**
6. **Education** [Indicate college/university, degrees obtained and year of obtainment]:
7. **Professional Certifications** [Indicate professional certifications obtained]:
8. **Languages** [For each language indicate proficiency: good, fair, or poor in speaking, reading, and writing]:
9. **Employment Record** [Starting with present position, list in reverse order every employment held by staff member since graduation, giving for each employment (see format here below): dates of employment, name of employing organization, positions held, Project handled.]:

   From [Year]: To [Year]:
   Employer:
10. **Detailed Tasks Assigned:** [List all tasks performed under the project]
11. **Permanente Employee of Bidder:** Yes or No
12. **Certification:**

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience. I understand that any willful misstatement described herein may lead to my disqualification or dismissal, if engaged.

Full name of authorized Signatory:

[Signature of authorized Signatory]
Date: Day/Month/Year

12.9 Annexure-II (NDA)

Technical Advisory Agency (TAA) - NON-DISCLOSURE AGREEMENT

(Separate form for Lead Bidder & Consortium Bidder)

This Non-Disclosure Agreement ("Agreement") is entered into between Andhra Pradesh Technology Services Limited (APTS)/Client and _____ ("Technical Advisory Agency" or "TAA"), acting through its Authorized Signatory.

1. **Definitions:**
   a. "**Discloser**" means the party disclosing the Confidential Information for the Permitted Purpose.
   b. "**Permitted Purpose**" means the performance of services under the Contract for Technical Advisory Agency (TAA) services and associated activities relating to APSDC, Disaster Recovery Centre, and other ITE&C Department projects.
   c. "**Confidential Information**" means (i) any commercial, technical, operational, security-related, financial, business, architectural, network, system, application, infrastructure, policy, governance, and other information made available by the Discloser, whether orally, electronically, visually, or in writing; (ii) the fact that discussions are taking place between the parties concerning the assignment; and (iii) the terms of this Agreement.
   d. "**Recipient**" means the party receiving the Confidential Information.
   e. "**Personnel**" means the Project Lead, Technical Specialists, employees, consultants, representatives, agents, and any other resources deployed by the TAA for performance of the Services.

2. **General:** As the selected Technical Advisory Agency of APTS/Client, the TAA shall devote its best efforts towards furthering the interests of APTS/ITE&C Department and shall ensure that all Personnel deployed for the assignment comply with the obligations stipulated under this Agreement. The TAA shall not engage in any activity that:

   a. Conflicts with the business interests of APTS/ITE&C Department;
   b. Interferes with the proper and efficient performance of the Services; or
   c. Compromises the independent and professional discharge of its responsibilities under the Contract.

   The TAA shall remain fully responsible and liable for the acts and omissions of its Personnel.

3. **Non-Disclosure**: The TAA shall, at all times during the Contract period and thereafter, maintain strict confidentiality of all Confidential Information received from APTS/ITE&C Department and shall not disclose, copy, reproduce, transfer, publish, distribute, or use such information except for the Permitted Purpose. The TAA acknowledges that APTS/ITE&C Department is the sole and exclusive owner of:

   a. Any confidential or proprietary technical, financial, operational, security, marketing, business, infrastructure, network, application, system, design, architecture, cost, program, development, customer, supplier, and trade secret information.
   b. Any information received by APTS/ITE&C Department from third parties under confidentiality obligations.
   c. Any confidential or proprietary information circulated within APTS/ITE&C Department through electronic mail systems, intranet, collaboration platforms, or otherwise.

   The TAA shall not claim any ownership, right, title, or interest in any Confidential Information disclosed under this Agreement. The TAA shall disclose Confidential Information only on a

strict need-to-know basis and solely for performance of the Services.

4. **Deployed Personnel Confidentiality:** The TAA shall ensure that every resource deployed under the Contract, including but not limited to the Project Lead and Technical Specialists, executes an Individual Confidentiality and Non-Disclosure Undertaking in a format acceptable to APTS/Client before being granted access to any premises, systems, applications, networks, documents, records, or information. The TAA shall maintain records of such undertakings and furnish copies to APTS/Client upon request. Any breach of confidentiality by deployed Personnel shall be deemed a breach by the TAA.

5. **Assignment of inventions:** Any invention, discovery, design, development, improvement, copyrightable material, process, methodology, report, framework, document, or work product created specifically under the Contract and relating to the Services shall be the exclusive property of APTS/ITE&C Department. The TAA hereby assigns to APTS/ITE&C Department all rights, title, and interest in such work products created during the course of the assignment..

6. **Application for Copyright and Patents:** The TAA shall execute all documents and provide all reasonable assistance required for securing intellectual property rights, copyrights, patents, or other protections in favour of APTS/ITE&C Department concerning work products developed under the Contract.

7. **Confidentiality Obligations in all circumstances:**
   a. Use the Confidential Information solely for the Permitted Purpose.
   b. Disclose Confidential Information only to authorized Personnel having a legitimate need to know the information for performance of the Services.
   c. Ensure that all such Personnel are bound by written confidentiality obligations that are no less stringent than those contained in this Agreement.
   d. Establish and maintain adequate administrative, technical, and physical safeguards to prevent unauthorized access, disclosure, modification, or loss of Confidential Information.
   e. Not make copies of Confidential Information except as necessary for the performance of the Services and with appropriate safeguards.
   f. Submit, along with the Proposal, a duly signed undertaking confirming its commitment to execute this NDA upon award of the Contract

7A. Responsibility for Personnel

The TAA shall be fully responsible for ensuring compliance with the confidentiality obligations contained herein by all Personnel deployed under the Contract. Any act, omission, unauthorized disclosure, misuse, loss, compromise, or breach of Confidential Information by any deployed Personnel shall be deemed a breach by the TAA, without prejudice to the right of APTS/Client to initiate action directly against the concerned individual.

8. **Exceptions:** The confidentiality obligations shall not apply to information that:
   a) was already in the Recipient's lawful possession prior to disclosure.
   b) was independently developed without use of Confidential Information.
   c) is or becomes publicly available through no fault of the Recipient.
   d) is lawfully obtained from a third party not under confidentiality obligations.
   e) is released with prior written approval of the Discloser; or
   f) is required to be disclosed pursuant to law, court order, or governmental direction, provided reasonable prior notice is given wherever legally permissible.

9. **Technical Advisory Agency information:** The TAA acknowledges that APTS/ITE&C Department may possess information belonging to Government Departments, agencies,

vendors, Service Providers, and other third parties that is subject to confidentiality obligations. The TAA shall maintain the confidentiality of such information in accordance with applicable contractual and legal requirements.

10. **Prior Employer Information:** The TAA shall ensure that its Personnel do not improperly use or disclose confidential information belonging to any former employer, client, customer, or third-party during performance of the Services.

11. **Presumption of breach:** Where Confidential Information is found in the possession of the TAA or its Personnel without authorization, it shall be presumed, unless proven otherwise, that such possession arose from a breach of this Agreement.

12. **Return of materials:** Upon completion or termination of the Contract, or upon request of APTS/Client, the TAA shall immediately return or securely destroy all Confidential Information, documents, reports, records, storage media, credentials, access devices, and other materials belonging to APTS/Client and certify such destruction if required.

13. **Equitable relief:** The TAA acknowledges that unauthorized disclosure or misuse of Confidential Information may cause irreparable harm to APTS/ITE&C Department and that APTS shall be entitled to seek injunctive relief, specific performance, and any other remedies available under law.

14. **Injunction:** In the event of any breach or threatened breach of this Agreement, APTS/Client shall be entitled to obtain immediate injunctive relief, in addition to any other legal or equitable remedies.

15. **Term:** The confidentiality obligations under this Agreement shall remain in force during the Contract period and shall survive for a period of three (3) years following expiry or termination of the Contract.

16. **Entire Agreement and Government Law:** This Agreement shall be governed by and construed in accordance with the laws of India. The Courts at Amaravati shall have exclusive jurisdiction over all disputes arising out of or relating to this Agreement. This Agreement constitutes the entire understanding between the parties concerning the subject matter hereof and supersedes all prior discussions, understandings, or representations.

IN WITNESS WHEREOF, the Parties have executed this Agreement on this ____ day of _____, 2026

_____	_____
FOR AND ON BEHALF OF THE TAA	FOR AND ON BEHALF OF APTS/CLIENT
Authorized Signatory:	Authorized Signatory:
_____	_____
Designation: _____	Designation: _____
Signature: _____	Signature: _____
Seal: _____	Seal: _____

Witness 1) _____
2)_____

** End of the Document **